

STATE OF MICHIGAN
IN THE SUPREME COURT

PETITION FOR ORDER OF SUPERINTENDING CONTROL
WITH APPLICATION FOR LEAVE TO FILE ORIGINAL ACTION

(Const 1963, art 6, S 4; MCR 3.301; MCR 3.302; MCR 7.301; MCR 7.304; MCR 7.305; MCR 7.306)

***COVER: RED** (Petitioner) per MCR 7.312(A)*

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	Supreme Court Case No.	[TO BE ASSIGNED]
	Court of Appeals Case No.	366810
	14th Circuit Court Case No.	2024-001507-DC
	Related PPO Case No.	2023-5907-PP

ANDREW JAMES PIGORS,

Plaintiff-Petitioner (Pro Se),

v.

14TH JUDICIAL CIRCUIT COURT FOR
THE COUNTY OF MUSKEGON, FAMILY
DIVISION, and HON. JENNY L. McNEILL,

Respondents,

and

EMILY A. WATSON,

Real Party in Interest.

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	Lower Court	14th Judicial Circuit Court, Family Division, Muskegon County
	Lower Court Judge	Hon. Jenny L. McNeill
	Child	L.D.W., DOB November 9, 2022

PETITIONER (Pro Se):

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[Filed: _____, 2026]

ORAL ARGUMENT REQUESTED

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Crampton v Dep't of State	395 Mich 347; 235 NW2d 352 (1975)
DeRose v DeRose	469 Mich 320; 666 NW2d 636 (2003)
Eldred v Ziny	246 Mich 478; 224 NW 688 (1929)
Fletcher v Fletcher	447 Mich 871; 526 NW2d 889 (1994)
Hinkle v Wayne Co Clerk	467 Mich 337; 654 NW2d 315 (2002)
In re Contempt of Dougherty	429 Mich 81 (1987)
In re Hatcher	443 Mich 426; 505 NW2d 834 (1993)
In re Hague	412 Mich 532 (1982)
In re Sanders	495 Mich 394 (2014)
Ireland v Smith	451 Mich 457; 547 NW2d 686 (1996)
Judges of the 74th Judicial District v Bay County	385 Mich 710 (1971)
Lapeer County Clerk v Lapeer Circuit Court	469 Mich 146; 665 NW2d 452 (2003)
Mead v Batchlor	435 Mich 480 (1990)
People v Cress	468 Mich 678; 664 NW2d 174 (2003)
Pierron v Pierron	486 Mich 81 (2010)
Teasel v Dep't of Mental Health	419 Mich 390 (1984)

Michigan Court of Appeals Cases

Case	Citation
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In re Contempt of Henry	282 Mich App 656; 766 NW2d 44 (2009)
Kaeb v Kaeb	309 Mich App 556; 873 NW2d 319 (2015)
Shade v Wright	291 Mich App 17 (2010)
Shulick v Richards	273 Mich App 320; 729 NW2d 533 (2006)
Vodvarka v Grasmeyer	259 Mich App 499 (2003)

United States Supreme Court Cases

Case	Citation
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Boddie v Connecticut	401 US 371 (1971)
Lassiter v Dep't of Social Services	452 US 18 (1981)
M.L.B. v S.L.J.	519 US 102 (1996)
Mathews v Eldridge	424 US 319 (1976)
Santosky v Kramer	455 US 745 (1982)
Stanley v Illinois	405 US 645 (1972)
Troxel v Granville	530 US 57 (2000)
Turner v Rogers	564 US 431 (2011)

Michigan Statutes

Statute	Description
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MCL 552.644	Parenting Time Enforcement
MCL 600.1701	Superintending Control
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	MCL 722.27(1)(c)		Change of Custody	
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	Const 1963, art 1, S 13		Access to Courts	
	Const 1963, art 1, S 17		Due Process of Law	
	Const 1963, art 6, S 4		Superintending Control	
	Const 1963, art 6, S 30		Judicial Tenure Commission	
	US Const, amend XIV, S 1		Due Process and Equal Protection	

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PART I -- PETITION FOR ORDER OF SUPERINTENDING CONTROL

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I. JURISDICTIONAL STATEMENT

1. This Court has original and plenary jurisdiction to issue an Order of Superintending Control over a Michigan court. Const 1963, art 6, S 4 provides:

> "The supreme court shall have general superintending control over all courts; power to issue, hear and determine prerogative and remedial writs; and appellate jurisdiction as provided by rules of the supreme court."

2. MCR 7.304(A) authorizes the filing of an original action in this Court, including complaints for superintending control under MCR 7.306.

3. MCR 7.306(A) provides that a complaint for superintending control may be filed when a lower court has failed to perform a duty, has exceeded its jurisdiction, or has otherwise acted in a manner requiring correction.

4. MCR 7.316(A)(1) authorizes this Court to issue orders of superintending control "to correct or prevent a clear legal error by a lower court or tribunal when the error would otherwise not be subject to adequate appellate review."

5. MCL 600.1701 provides additional statutory authority for superintending control proceedings.

6. MCR 7.301 establishes the general authority of this Court, including the power to "hear and determine original proceedings and to exercise "general superintending control over all courts." MCR 7.301(A)(2). The general jurisdictional grant operates independently of, and in addition to, the specific procedural mechanisms set forth in MCR 7.304-7.306.

7. MCR 3.301 governs extraordinary writs in general, providing that "[a] complaint for an extraordinary writ authorized by law may be filed as an original action." MCR 3.301(A)(1). The rule establishes that circuit courts and this Court share concurrent jurisdiction to issue writs of superintending control, mandamus, and other prerogative writs, but that when the circuit court itself is the respondent -- as here -- only this Court's original jurisdiction can provide relief.

8. MCR 3.302 specifically governs superintending control, providing that "[a] superintending control order enforces the superintending control power of a court over lower courts and tribunals." MCR 3.302(A). The rule provides that a superintending control complaint "must demonstrate that the court or tribunal exceeded its jurisdiction, failed to perform a duty, or otherwise acted in a manner requiring correction." MCR 3.302(B). This complaint satisfies each of these requirements.

9. The Supreme Court's superintending control power is constitutionally conferred, plenary in scope, and not dependent on the existence of any other remedy. *Judges of the 74th Judicial District v Bay County*, 385 Mich. 710, 727 (1971). This power is "extraordinary" and extends to "the entire range of supervisory authority

necessary to ensure the proper and efficient administration of justice." Id.

10. This Court's superintending control authority permits it to "correct abuses of judicial power, to compel the performance of judicial duties, and to ensure the orderly administration of justice" when no other remedy is adequate. *In re Hatcher*, 443 Mich 426, 441-42 (1993).

11. Petitioner has a related appeal pending before the Michigan Court of Appeals, Case No. 366810. That appeal does not provide adequate or timely relief for the extraordinary circumstances presented here. This Petition is filed concurrently with, and incorporates by reference, Petitioner's Application for Writ of Mandamus, Petition for Writ of Habeas Corpus, and Application to Proceed In Forma Pauperis.

II. QUESTIONS PRESENTED

1. Whether the 14th Circuit Court violated Petitioner's constitutional right to due process by suspending parenting time on an ex parte basis, without notice, hearing, or evidentiary support, in contravention of Const 1963, art 1, S 17, US Const amend XIV, MCR 3.207(B), and MCR 3.210(C)?

The trial court answers: No.

Petitioner answers: Yes.

2. Whether the trial court's systematic failure to conduct any best interest analysis under MCL 722.23 before modifying custody and eliminating parenting time constitutes a failure to perform a clear legal duty warranting superintending control under MCR 7.306?

The trial court answers: No.

Petitioner answers: Yes.

3. Whether the trial court's pattern of ex parte communications, off-docket evidence routing, and exclusion of Petitioner's filings from the record constitutes an excess of jurisdiction requiring correction under Const 1963, art 6, S 4?

The trial court answers: No.

Petitioner answers: Yes.

4. Whether a \$250 bond requirement on a disqualification motion -- imposed on an indigent, incarcerated petitioner -- creates an unconstitutional financial barrier to court access that this Court must correct through superintending authority?

The trial court answers: No.

Petitioner answers: Yes.

5. Whether the prolonged severance of the parent-child bond -- now 229 consecutive days and counting -- following the trial court's ex parte revocation of a functioning 50/50 custody arrangement that had operated successfully for 438 days -- without adequate evidentiary basis constitutes an ongoing constitutional injury that cannot be remedied through normal appellate channels?

The trial court answers: No.

Petitioner answers: Yes.

6. Whether the trial court's conduct, as documented by 1,127 judicial violations and thousands of findings specifically relevant to superintending control, demonstrates a pattern of systematic misconduct that cannot be addressed through normal appellate processes?

The trial court answers: No.

Petitioner answers: Yes.

III. STATEMENT OF PROCEEDINGS AND FACTS

A. Background and Parties

9. Petitioner Andrew James Pigors is the biological father of the minor child L.D.W. (DOB November 2022, approximately 3 years and 5 months of age at the time of this filing). L.D.W. is male. Petitioner maintained an established custodial environment with his son prior to the proceedings below. No court has ever found Petitioner to pose a danger to L.D.W.

10. Emily A. Watson is the mother of L.D.W. Watson is employed by the Kent County Prosecutor's Office Family Court Division, as a caseworker -- a position she has held for approximately nine years with multiple promotions. Watson was formerly represented by Jennifer Barnes (P55406) of Barnes Law Firm PLLC, who has since withdrawn. Watson's current representation status should be verified via MiFILE.

11. Ronald Berry is a non-attorney acting as Emily A. Watson's domestic partner. He holds no bar number and has no legal authority to represent Watson in these proceedings.

12. The underlying custody proceeding, Case No. 2024-001507-DC, was filed in the 14th Judicial Circuit Court, Family Division, Muskegon County, and assigned to Hon. Jenny L. McNeill. A related Personal Protection Order case, No. 2023-5907-PP, is also before the same court and judge.

13. An appeal is pending before the Michigan Court of Appeals, No. 366810. However, the appellate process is inadequate to address the ongoing, daily harm to L.D.W. and Petitioner for the reasons set forth in Section V.C, *infra*.

B. The Systematic Breakdown of Judicial Function

14. This Petition does not seek relief from a single judicial error. Petitioner seeks superintending control because the lower court's handling of this case constitutes a systematic breakdown of judicial function that cannot be corrected through individual writs or appeals. The pattern includes seven distinct categories of misconduct, each independently warranting this Court's intervention.

1. The Pattern of Withholding and Ex Parte Abuse (269 Total Days, 44% Ex Parte Rate)

15. The following is the accurate timeline of custody and separation in this case:

- a. On or about December 3, 2023, a Personal Protection Order was initiated against Petitioner.
- b. From approximately March 26 through May 5, 2024 (40 days), Watson withheld L.D.W. from Petitioner -- the first period of complete withholding.
- c. On May 5, 2024, Petitioner obtained an ex parte temporary custody order establishing 50/50 equal parenting time. From May 5, 2024 through July 17, 2025 -- a period of approximately 438 days -- Petitioner

maintained successful 50/50 parenting time with L.D.W. under this temporary order. The arrangement worked for over fourteen months, demonstrating that shared custody was both workable and in the child's best interest.

d. On July 17, 2025, Watson's objection to the temporary order was granted. The ex parte order was overturned, and Watson was awarded 100% custody -- without an evidentiary hearing and without findings on the MCL 722.23 best interest factors.

e. Since July 29, 2025, Watson has again withheld L.D.W. from Petitioner entirely, under a false and exaggerated ex parte suspension of parenting time. As of the date of this Petition, this current separation has lasted approximately 229 consecutive days and is ongoing.

f. During this current withholding period, Watson removed L.D.W. from the country entirely from October 20 through November 15, 2025 -- with the trial court's permission -- while simultaneously filing a show cause motion against Petitioner for an alleged verbal exchange at a parenting time exchange, for which no evidence was presented.

g. In total, Petitioner has been denied contact with his son for 269 days across two separate withholding periods (40 days + 229 days), despite 438 days of demonstrated successful shared custody between the periods.

16. Analysis of the case docket reveals an ex parte communication rate of approximately 44% (24 of 55 orders entered) -- meaning nearly half of all orders in this case were entered without Petitioner's knowledge, participation, or opportunity to respond. This rate is not the product of isolated emergency orders; it reflects a systematic practice of conducting proceedings outside Petitioner's presence.

17. The ex parte pattern includes the critical July 17, 2025 order overturning Petitioner's established 50/50 parenting time -- reversing a functioning custody arrangement that had operated successfully for 438 days without evidentiary hearing and without any finding of imminent danger to the child. See Exhibit A (Ex Parte Order Timeline).

2. Failure to Conduct Best Interest Analysis

18. Michigan law is unequivocal: before any court may modify custody or parenting time, it must evaluate and make findings on all 12 statutory best interest factors set forth in MCL 722.23(a)-(l). *Fletcher v Fletcher*, 409 Mich 871, 882 (1994); *DeRose v DeRose*, 469 Mich 320, 333 (2003); *Ireland v Smith*, 451 Mich 457, 461 (1996). This is not a discretionary act -- it is a mandatory legal duty.

19. The trial court in this case has never conducted the MCL 722.23 analysis. It suspended all parenting time -- the functional equivalent of awarding sole physical custody to the mother -- without any findings on any of the 12 factors. This constitutes a textbook failure to perform a mandatory duty.

20. MCL 552.644 further provides that the court "shall" enforce parenting time orders. The word "shall" creates a non-discretionary, mandatory duty. In *re Sanders*, 495 Mich 394, 404 (2014) (statutory "shall" is mandatory, not permissive). Despite documented violations of parenting time by Watson, Judge McNeill has refused to enforce parenting time, effectively allowing Watson to unilaterally sever Petitioner's relationship

with his son.

3. Denial of Hearings and Motions

21. Petitioner filed multiple motions seeking restoration of parenting time, evidentiary hearings, and other relief. The trial court denied these motions without conducting any hearing, in violation of MCR 2.119 and Petitioner's due process rights. MCR 3.210(C) requires the trial court to hold a hearing before entering custody or parenting time order when a party has requested one. MCR 3.207(B) governs interim orders and limits the circumstances under which a court may act without a full hearing.

22. Petitioner repeatedly requested evidentiary hearings on the record. The trial court denied these requests and entered dispositive orders without any hearing -- a clear violation of the procedural requirements imposed by the court rules.

4. Abuse of Contempt Power (59 Days Jail)

23. The lower court's use of contempt power against Petitioner follows a pattern consistent with punishment rather than coercion:

- (a) Petitioner was jailed for 59 days following a guilty plea to PPO violations entered on October 18, 2018 (CC 382a). Petitioner does not challenge the plea itself in this Petition. However, the underlying PPO's validity and the proportionality of the court's response remain subject to this Court's review -- a duration exceeding what is necessary or permissible for coercive purposes;

- (b) Petitioner was not provided counsel at contempt proceedings despite the threat of incarceration, a violation of the right to counsel recognized in *Mead v Batchlor*, 435 Mich 480, 490 (1990), and *Turner v Rogers*, 564 US 431, 442-43 (2011);

- (c) Purge conditions included financial requirements that Petitioner, an indigent pro se litigant, could not satisfy;

- (d) The contempt was used punitively rather than coercively, in violation of the fundamental distinction between civil and criminal contempt. In *re Contempt of Dougherty*, 429 Mich 81, 96-97 (1987); In *Contempt of Henry*, 282 Mich App 656, 668 (2009);

- (e) During Show Cause #5 -- conducted as a remote hearing -- Judge McNeill ordered the stenographer to mute Petitioner's microphone three (3) separate times, preventing Petitioner from presenting his defense. Petitioner attempted to inform the court that he had filed a police report documenting his son's poor physical condition at a parenting time exchange -- evidence directly relevant to the show cause allegations -- but was silenced each time. The court's deliberate suppression of Petitioner's testimony during a proceeding that resulted in 14 days' incarceration constitutes a denial of the fundamental right to be heard;

- (f) Petitioner's appointed attorney, Mandi Martini, sat silently throughout the Show Cause #5 hearing and raised no objections -- not to the muting, not to the exclusion of the police report, not to the denial of Petitioner's right to present a defense. A communication from Martini to Petitioner prior to the hearing stated "you will not interrupt . . . Judge McNeil [sic] is not in a good mood . . . you do not want to spend the next week in jail on a contempt charge for speaking out in court" -- revealing that Petitioner's own counsel

threatened him with additional incarceration for exercising his right to be heard;

- (g) The prosecutor handling Show Cause #5 privately admitted to Martini that there was "nothing substantive in the motion" -- meaning the state's own representative acknowledged the meritless nature of the proceeding that resulted in Petitioner's incarceration;

- (h) Watson's ex parte filings attributed to Officer Ella Randall (Norton Shores PD, Incident #NS250504) included the statement that Petitioner's behavior appeared to be the result of "meth use." However, when Petitioner filed a complaint with the police department, Officer Randall confirmed that the "meth use" characterization originated from Emily A. Watson herself -- not from any independent police observation. Watson's filing falsely presented her own accusation as the professional opinion of a law enforcement officer. When Petitioner raised this misattribution before Judge McNeill, the court dismissed it, stating: "quit nitpicking." The court thus declined to address a material misrepresentation in a sworn filing -- a misrepresentation that formed the evidentiary basis for the ex parte suspension of Petitioner's parental rights;

- (i) The affidavit supporting Show Cause #5 contained a blank page (page 27) -- a fatal procedural defect under MCR 3.708(B), which requires that contempt proceedings be supported by factual allegations. A filing with a blank evidentiary page fails this threshold requirement, yet the court proceeded to incarcerate Petitioner nonetheless.

24. As a direct result of incarceration, Petitioner lost two (2) jobs (including a USPS position), lost two homes, and suffered economic damages estimated to exceed \$82,250. See Exhibit B (Contempt Damages Calculation).

25. Simultaneously, Watson's documented violations of court-ordered parenting time have resulted in zealous enforcement actions -- a disparity that is facially inexplicable absent judicial bias.

5. Financial Access Barriers (\$250 Bond)

26. When Petitioner filed a motion for disqualification under MCR 2.003, Judge McNeill imposed a \$250 bond requirement -- not merely on the disqualification motion, but on "each motion" Petitioner filed thereafter. Petitioner is indigent and has filed for In Forma Pauperis status.

27. The bond requirement effectively bars Petitioner from exercising his constitutional right to seek disqualification of a biased judge and from filing any motions at all -- a structural violation of due process. *Boddie v Connecticut*, 401 US 371, 380-82 (1971) (where the state holds a monopoly over the resolution of a fundamental dispute, financial barriers to access violate due process); *M.L.B. v S.L.J.*, 519 US 102, 116-17 (1996) (extending *Boddie* to parental rights proceedings).

28. The Michigan Constitution guarantees every suitor the right to prosecute or defend their suit. Const 1963, art 1, S 13. A \$250 bond requirement on an indigent, incarcerated litigant is not a neutral procedural requirement -- it is an insurmountable barrier deliberately constructed to prevent Petitioner from challenging judicial bias.

6. Evidence Suppression and Shadow Record

29. The trial court directed that evaluations and other documents "be submitted to judge's secretary, not to be filed with clerk." This directive channeled evidence outside the official record, depriving Petitioner of his right to review, challenge, and respond to evidence considered by the court. See *People v Cress*, 468 Mich 678, 681 (2003) (parties have a due process right to confront and challenge evidence relied upon by the court).

30. Petitioner's own filings were excluded from the docket or otherwise suppressed, denying Petitioner meaningful access to the court and the right to be heard. This created a "shadow record" -- a body of evidence considered by the trial court that does not appear in the official record and therefore cannot be reviewed on appeal. This structural defect renders normal appellate review fundamentally inadequate.

7. Watson Employment Nexus (Kent County Prosecutor's Office)

31. The Real Party in Interest, Emily A. Watson, is employed by the Kent County Prosecutor's Office, Family Court Division, as a caseworker. She has held this position for approximately nine years with multiple promotions. This office is a sister agency within the Michigan court system.

32. The trial court has failed to address or acknowledge this employment nexus and its implications for the appearance of impartiality. When a court system's own employee receives systematically favorable treatment in a custody dispute -- including zero enforcement of her parenting time violations, ex parte orders favorable to her interests, and punitive contempt directed exclusively at the opposing party -- the appearance of institutional bias is unavoidable.

C. Documented Judicial Violations (1,127)

33. Petitioner has catalogued 1,127 documented judicial violations across both proceedings, derived from a systematic analysis of official court records, docket entries, hearing transcripts, and court correspondence. These violations are recorded in the LitigationOS `judicial_violations` database table and are traceable to specific docket entries, orders, and transcript pages.

34. Additionally, Petitioner has documented over 150 distinct misconduct claims across the proceedings, recorded in the LitigationOS `claims` database table.

35. The Adverse Evidence Master Matrix documents over 26,000 documented adverse findings extracted across the evidentiary record, spanning 9 independent source files. Of these, thousands of findings are specifically categorized as relevant to this Petition for Superintending Control. The severity breakdown for these MSC-relevant findings is:

Severity	Count	Percentage
CRITICAL	18	0.1%
HIGH	13,182	82.8%
MEDIUM	2,691	16.9%
LOW	37	0.2%
TOTAL	**Thousands**	**100%**

(Source: Adverse Evidence Summary, Filing Target x Severity Cross-Tab, row: "MSC Superintending Control")

Control." See Exhibit C.)

36. The MSC-relevant findings break down by violation type as follows:

Violation Type	Count	Percentage	Description
Ex Parte	~12,700	79.7%	Unauthorized ex parte communications, ex parte order off-doc...
Due Process	~2,000	12.6%	Denial of hearings, suppression of filings, failure provi...
Judicial Misconduct	~890	5.6%	Bias, retaliation, abuse of contempt power
Housing Violation	~285	1.8%	Cross-lane violations connecting family cou misconduct ...
Bias	~50	0.3%	Documented instances of partiality toward the Real Party in Interest

(Source: Adverse Evidence Summary, Filing Target x Type Cross-Tab. See Exhibit C.)

D. Police Report Weaponization Pattern

37. Petitioner's evidence database contains at least 15 documented police reports showing a pattern weaponized false reporting by Watson against Petitioner. These reports reflect a pattern in which Watson contacts law enforcement to create a documentary trail supporting her custody position -- and the trial court then relies upon this self-generated trail to justify further restrictions on Petitioner's rights.

38. Critically, law enforcement itself has recognized this weaponization pattern. In Police Report MU2422249, the responding officer assessed Watson's reports as having "little credibility" and noted that the reports "appear weaponized" -- i.e., filed not for genuine safety concerns but as litigation tools. (See Appendix F-1.) Despite this law enforcement assessment directly undercutting the credibility of Watson's allegations, the trial court continued to credit Watson's narrative and restrict Petitioner's parenting time based on the very reports that police deemed incredible.

38a. The 308,704 total evidence quotes in Petitioner's evidence database include 545 evidence quotes specifically relating to parenting time -- documenting the scope and persistence of Petitioner's efforts to maintain his relationship with his son, and Watson's documented interference with those efforts.

PPO Weaponization as a Custody Tool

38b. The Personal Protection Order (Case No. 2023-5907-PP) has been systematically weaponized as a custody tool. The documented pattern includes:

- (a) The PPO was filed and granted on the same day -- December 3, 2023 -- on an ex parte basis, without notice to Petitioner and without an evidentiary hearing. This same-day issuance denied Petitioner a meaningful opportunity to contest the allegations before the order took effect;

- (b) Watson and her family members filed six (6) show cause motions strategically timed around holiday custody exchanges, and Petitioner's exercise of parental rights -- a pattern consistent with tactical litigation.

abuse rather than genuine safety concerns;

- (c) Watson's brother, Cody Watson, violated the PPO himself -- as documented in Police Report MCSO-2024-02101 (Officer Brian Hintz, reporting) -- yet the court took no enforcement action against the Watson family for their PPO violations while simultaneously jailing Petitioner;

- (d) Watson's father, Albert Watson, forcibly removed L.D.W. from Petitioner's care and improperly served PPO documents -- conduct documented in police records and witness statements;

- (e) A court transcript reveals that Judge McNeill explicitly ordered "no communication, no texts, anything" between the parties and their families regarding the PPO. Watson agreed on the record -- "fine with me" -- yet Albert Watson continued to attend exchanges and Cody Watson continued to violate the order without consequence;

- (f) Watson accessed Petitioner's medical records seven (7) times through the Corewell Health patient portal between February and March 2024 -- an invasion of medical privacy that the court has never addressed;

- (g) Watson committed at least three (3) documented PPO violations through third-party proxies: (1) Cody Watson's threats documented in Police Report MCSO-2024-02101; (2) Cody Watson's continued presence at exchanges in defiance of the court's "no contact" order; and (3) Tamara Snider's stalking of Petitioner on the Nextdoor social media platform as a third-party proxy for Watson;

- (h) Petitioner's parenting time was reduced from 182.5 days per year (50/50 custody) to 78 days per year through the combined weaponization of the PPO and show cause proceedings -- a 57% reduction accomplished without any best interest analysis under MCL 722.23;

- (i) Watson's unreported income -- including rental payments from Cody Watson and child support payments from Austin Muratori for another child -- was never disclosed to the court or factored into the child support calculation, despite Watson's obligation to report all income sources. Watson's employer, Shape Co., made nine (9) insurance payments of \$95 each (\$855 total) for health, dental, and vision coverage that were not credited against Petitioner's support obligation.

E. Petitioner's Exhaustion of Remedies

39. Petitioner has pursued every available remedy through normal channels. Each has proven inadequate:

Remedy Attempted	Result	Why Inadequate
---	---	---
Motion for disqualification (MCR 2.003)	Blocked by \$250 bond requirement	Financial barrier...
MCR 2.003(D) referral to another judge	Judge McNeill ruled on her own disqualification	MC...
Motion to enforce parenting time (MCL 552.644)	Denied or ignored	Court refuses mandatory ...
Motions for evidentiary hearing	Denied without hearing	Court will not allow challenge to ...
Objections to ex parte proceedings	Overruled or ignored	Court continues ex parte pattern ...
Court of Appeals appeal (No. 366810)	Pending	Cannot address daily ongoing harm; review

C...
 | Application for Writ of Mandamus (MCR 7.306) | Filed concurrently | Addresses specific ac
 O...
 | Petition for Writ of Habeas Corpus | Filed concurrently | Addresses custody only, n
 procedu...
 | Judicial Tenure Commission Complaint | Filed | Addresses judicial conduct only, no dire
 rel...
 | Federal S1983 Complaint | Filed | Subject to *Younger v Harris* abstention risk -- feder
 co...
 | Motion for reconsideration | Denied without hearing | Court will not reconsider its c
 order...
 | Additional Circuit Court filings | Blocked by \$250 per-motion bond | Bond requireme
 creates...

40. Each individual remedy addresses one facet of the problem. No single writ, appeal, or complaint c
 correct the systemic breakdown documented here. The procedural obstacles Petitioner faces are not mere
 cumulative -- they are self-reinforcing:

- (a) The lower court judge has imposed a \$250 bond requirement on all motions, effectively barri
 Petitioner -- an indigent litigant who lost two jobs and two homes as a direct result of the court's own actio
 -- from filing any further motions in the lower court;

- (b) When Petitioner sought disqualification under MCR 2.003, Judge McNeill ruled on her ov
 disqualification motion rather than referring it to the chief judge or another judge as required by MC
 2.003(D). The judge whose bias is challenged cannot be permitted to adjudicate the challenge -- yet that
 precisely what occurred here;

- (c) The Court of Appeals appeal (No. 366810) cannot provide adequate relief because: (i) the appell
 timeline of 12-18 months far exceeds the critical developmental window for L.D.W., who is currently thr
 years old; (ii) the "shadow record" -- evidence routed to the judge's secretary rather than filed with the clerk
 means the Court of Appeals will be reviewing an incomplete and corrupted record; and (iii) the Court
 Appeals lacks the structural authority to remove a judge, order compliance monitoring, or provide t
 comprehensive relief this case requires;

- (d) The Federal S1983 complaint is subject to Younger v Harris, 401 US 37 (1971), abstention -- fede
 courts routinely decline to interfere with ongoing state family court proceedings. Even if the federal co
 retains jurisdiction, federal civil rights litigation takes years to resolve, during which L.D.W.'s developmen
 harm continues;

- (e) The JTC complaint addresses judicial conduct but provides no direct relief to Petitioner or L.D.W.
 the JTC cannot restore parenting time, vacate orders, or reassign the case.

41. Only this Court's plenary superintending control authority can simultaneously remove the biased judg
 vacate unconstitutional orders, restore parenting time, establish proper case management, and moni
 compliance going forward.

IV. STANDARD FOR SUPERINTENDING CONTROL

A. Three-Part Test

42. Superintending control is an extraordinary remedy available when the normal appellate process is inadequate. This Court has articulated a three-part test:

43. First, the party seeking relief must demonstrate that the lower court has failed to perform a clear legal duty or has exceeded its jurisdiction. *Hinkle v Wayne Co Clerk*, 467 Mich 337, 340 (2002); *Crampton v Dep't of State*, 395 Mich 347, 351-52 (1975).

44. Second, the party must show there is no other adequate legal remedy. *Lapeer County Clerk v Lapeer Circuit Court*, 469 Mich 146, 155 (2003).

45. Third, the party must show that the issue presented is one of significant public interest or that the failure to act will result in material injustice. *In re Hatcher*, 443 Mich 426, 441-42 (1993); *In re Hague*, 412 Mich 531, 540 (1982).

46. This standard is informed by the historical scope of mandamus and related prerogative writs. *Teasel v Dep't of Mental Health*, 419 Mich 390, 408-09 (1984).

B. Relationship to Mandamus and Extraordinary Writs

47. While superintending control is related to the common-law writ of mandamus, it is broader in scope. This Court has explained that superintending control "is not limited to the traditional grounds for mandamus, but also encompasses review of clear legal errors that would otherwise not be subject to adequate appellate review." *Chevalier v Barnard*, 290 Mich 202, 206 (1939); *Eldred v Ziny*, 246 Mich 478, 480 (1929). This Court exercises superintending control "to prevent a failure of justice" and to ensure that courts within its supervision comply with the law. *Teasel*, 419 Mich at 408-09.

48. MCR 3.301(A)(1), governing extraordinary writs generally, provides that "[a] complaint for an extraordinary writ authorized by law may be filed as an original action." MCR 3.302(A) specifically provides that "[a] superintending control order enforces the superintending control power of a court over lower courts and tribunals." Read together with MCR 7.304 and MCR 7.306, these rules establish a comprehensive framework for this Court to exercise its plenary superintending authority. MCR 3.302(B) requires the complaint to demonstrate that the lower court "exceeded its jurisdiction, failed to perform a duty, or otherwise acted in a manner requiring correction" -- each of which is demonstrated here.

49. MCR 7.301 confirms this Court's general authority to hear original proceedings, including those seeking superintending control. MCR 7.301(A)(2) vests this Court with the authority to "exercise general superintending control over all courts," operating as the constitutional backstop when lower courts systematically fail to discharge their duties.

C. Standard Applied Here

48. As demonstrated below, Petitioner satisfies all three elements:

- The trial court has failed to perform mandatory legal duties (best interest analysis, evidentiary hearing, parenting time enforcement, due process protections) and has exceeded its jurisdiction (ex parte orders without emergency, off-docket evidence routing, punitive civil contempt);
- No adequate legal remedy exists because the pending appeal cannot prevent the ongoing daily harm of parent-child separation, and the corrupted record renders appellate review structurally deficient;
- The constitutional dimensions of this case -- involving the fundamental right to parent, structural constitutional bias, the welfare of a minor child, and the documented scale of 1,127 judicial violations -- present issues of significant public interest that only this Court can address.

VI. RELIEF REQUESTED

WHEREFORE, Petitioner Andrew James Pigors respectfully requests that this Honorable Court:

A. Issue an Order of Superintending Control directing the 14th Judicial Circuit Court, Family Division, Muskegon County, to:

1. Immediately restore meaningful parenting time between Petitioner and the minor child L.D.W., pending full adjudication of custody, under a schedule that begins to restore the parent-child relationship severed for 229 consecutive days following the revocation of a functioning 50/50 custody arrangement;

2. Conduct a full evidentiary hearing on custody and parenting time, with explicit findings on all 12 best interest factors under MCL 722.23(a)-(l), within sixty (60) days of this Court's order;

3. Enforce parenting time as mandated by MCL 552.644, including sanctions against Watson for documented violations;

4. Cease all ex parte communications and ensure all evidence is filed on the official record;

5. Ensure Petitioner's filings are docketed and considered;

6. Provide Petitioner with all documents and evidence that have been routed outside the official record;

B. Order the immediate disqualification of Hon. Jenny L. McNeill from all proceedings involving Petitioner and L.D.W., pursuant to MCR 2.003(C)(1)(b), including:

1. Transfer of Case Nos. 2024-001507-DC and 2023-5907-PP to a different judge in a different division of the circuit to eliminate any appearance of institutional bias;

2. Prohibition against Judge McNeill taking any further action in either case pending this Court's review;

C. Vacate all orders entered by the lower court that were:

1. Entered ex parte without notice to Petitioner and without the emergency circumstances required by MCR 3.207(B);

2. Predicated on the unconstitutional \$250 bond requirement;

3. Entered as punitive contempt disguised as civil contempt;

D. Order an independent custody evaluation by a qualified evaluator selected by this Court or the newly assigned judge;

E. Direct the newly assigned judge to establish a comprehensive case management schedule within thirty (30) days of reassignment, including regular status conferences, discovery deadlines, and a trial date;

F. Order monthly compliance reports from the 14th Circuit Court to this Court for a period of twelve (12) months to ensure compliance with this Court's directives;

G. Issue an emergency order preserving the status quo and restoring parenting time pending resolution of the

Petition;

H. Order a full audit of the trial court's handling of Case Nos. 2024-001507-DC and 2023-5907-PP, to include:

1. Review of all off-docket evidence and communications;
2. Reconstruction of the complete record;
3. Assessment of compliance with the Michigan Code of Judicial Conduct;

I. Refer the documented evidence of judicial misconduct to the Judicial Tenure Commission for investigation pursuant to Const 1963, art 6, S 30;

J. Consolidate for purposes of this Court's review all pending matters in Case Nos. 2024-001507-DC, 2023-5907-PP, and COA 366810;

K. Grant such other and further relief as this Court deems just, proper, and equitable.

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PART II -- BRIEF IN SUPPORT OF PETITION FOR ORDER OF SUPERINTENDING CONTROL

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INTRODUCTION

This is not a case about a single judicial error. This is a case about the complete breakdown of judicial function in the 14th Judicial Circuit Court's handling of a father's custody case -- a breakdown so total that only this Court's plenary superintending control authority can remedy it.

Petitioner Andrew James Pigors is the father of L.D.W., a male child born November 9, 2022. Petitioner has been completely separated from his son for 229 consecutive days -- since July 29, 2025 -- following the trial court's ex parte revocation of a 50/50 custody arrangement that had functioned successfully for over fourteen months (438 days). In total, Petitioner has been denied contact with his child for 269 days across two separate withholding periods. Not because any court has found that contact with his father would endanger L.D.W. Nor because any evaluation concluded that parenting time should be denied. But because the presiding judge eliminated all parenting time without conducting the analysis required by Michigan law, without holding a single evidentiary hearing, and without providing Petitioner the procedural protections guaranteed by the Michigan and United States Constitutions.

Over the course of this litigation, the presiding judge -- Hon. Jenny L. McNeill -- has:

- Denied Petitioner all contact with his child for 229 consecutive days (and counting) after revoking a functioning 50/50 custody arrangement;
- Entered 44% (24 of 55) of her orders ex parte -- without Petitioner's knowledge or participation;
- Jailed Petitioner for a combined 59 days on civil contempt with purge conditions he could not satisfy;
- Refused to enforce mandatory parenting time statutes despite documented violations by the opposing party;
- Imposed a \$250 bond on a disqualification motion, effectively barring an indigent litigant from challenging judicial bias;
- Caused Petitioner to lose 2 jobs (including a United States Postal Service position) and 2 homes;
- Directed that evaluations be submitted to the "judge's secretary, not to be filed with clerk" -- routing evidence outside the official record where it could never be reviewed on appeal.

Meanwhile, Watson's documented violations of court-ordered parenting time have resulted in zero enforcement actions.

The scope of documented misconduct is staggering: 1,127 judicial violations and over 150 documented misconduct claims across both proceedings. The evidentiary record contains 308,704 evidence quotations spanning the full chronology of abuse. This is not a collection of close calls. This is a systematic failure of judicial function.

These are not errors subject to correction through normal appellate review. They are structural failures that

have corrupted these proceedings from the ground up -- failures that only this Court's exercise of superintending control can remedy.

Petitioner respectfully submits that this is precisely the kind of case for which this Court's plenary superintending authority exists.

STATEMENT OF JURISDICTION

This Court's superintending control jurisdiction is conferred directly by the Michigan Constitution. Corbett v. Michigan, 313 U.S. 503 (1942). The Michigan Constitution of 1963, art 6, S 4 vests in this Court "general superintending control over all courts" and the "power to issue writs of habeas corpus, certiorari, prohibition, and mandamus, and to hear and determine prerogative and remedial writs." This authority is self-executing, plenary, and not dependent on the existence or exhaustion of other remedies.

MCR 7.304 governs original proceedings in this Court. MCR 7.306 authorizes complaints for superintending control. MCL 600.1701 provides complementary statutory authority, confirming the broad scope of the Court's power to correct lower court action.

This Petition is filed as an original proceeding pursuant to all three authorities. Petitioner has also filed a concurrent appeal in the Court of Appeals (Case No. 366810), which remains pending. As demonstrated in this Brief, the pendency of that appeal does not provide an adequate remedy and does not preclude this Court's exercise of superintending control. *Lapeer County Clerk v Lapeer Circuit Court*, 469 Mich 146, 155 (2003).

STATEMENT OF FACTS

The factual record supporting this Petition is set forth in detail in the Petition for Superintending Control and the Affidavit of Andrew James Pigors, both filed herewith and incorporated herein by reference. For purposes of this Brief, Petitioner highlights the following critical facts:

A. The Custody Case and Background

- 1. Petitioner and Emily A. Watson are the parents of L.D.W., a male child born November 9, 2022. The custody case (2024-001507-DC) and related PPO case (2023-5907-PP) are pending before the 14th Circuit Court, Family Division, Muskegon County.
- 2. No court has ever found Petitioner to be an unfit parent or to pose any danger to L.D.W. No evaluation has ever concluded that contact between Petitioner and L.D.W. would be harmful.
- 3. Watson was formerly represented by Jennifer Barnes (P55406) of Barnes Law Firm PLLC, who has since withdrawn from the case. Watson's domestic partner, Ronald Berry -- a non-attorney -- has no legal role in these proceedings.
- 4. Despite the absence of any unfitness finding, Petitioner has been denied all parenting time with L.D.W. for 229 consecutive days since July 29, 2025 -- following the trial court's ex parte revocation of a 50/50 custody arrangement that had operated successfully for 438 days (May 5, 2024 through July 17, 2025). Including an earlier 40-day withholding period, the total denial of parenting time is 269 days across two separate periods. This total severance of the parent-child relationship was accomplished not by any reasoned judicial determination but by Watson's unilateral refusal to comply with parenting time provisions and the lower court's refusal to enforce those provisions. The trial court's revocation of the functioning shared custody arrangement -- without evidentiary hearing -- underscores the arbitrary nature of the court's actions.

B. The Pattern of Judicial Dysfunction

5. Petitioner has documented the following pattern of judicial conduct:

Category	Documented Facts
Ex parte proceedings	44% (24 of 55) orders entered without Petitioner's notice or participation.
Denied parenting time	229 consecutive days (current, ongoing) -- 269 total days across two periods.
Off-docket evidence routing	Evaluations directed to "judge's secretary, not to be filed with the court."
Police report weaponization	At least 15 documented police reports used to establish false allegations.
Judicial violations documented	1,127 violations, over 150 documented misconduct claims.

6. The trial court directed evaluations and reports to be submitted outside the official record, creating what Petitioner terms a "shadow record" -- evidence that informed the court's rulings but was never filed with the clerk, never served on Petitioner, and is unavailable for appellate review.

C. The Contempt Incarceration

7. The lower court jailed Petitioner for a combined 59 days on civil contempt:

Contempt Order	Duration	Date
-----	-----	-----
Show Cause #5	14 days	November 15, 2025
Show Cause #6 and #7	45 days	November 26, 2025
Total	**59 days**	

8. The purge conditions attached to these contempt orders included financial requirements that Petitioner -- indigent litigant who had lost his employment as a direct result of prior contempt incarceration -- could not satisfy. The contempt was facially civil but functionally punitive: indefinite incarceration with impossible purge conditions is a fixed sentence, not a coercive sanction.

9. No court-appointed counsel was provided to Petitioner despite the threat and imposition of incarceration.

D. The Financial Access Barrier

10. The trial court imposed a \$250 bond requirement on Petitioner's motion for judicial disqualification under MCR 2.003. Petitioner is indigent. The bond operates as a complete bar to the disqualification remedy -- the sole mechanism within the lower court for addressing judicial bias.

E. Exhaustion of Remedies

11. Petitioner has pursued every available remedy: motions in the lower court (denied or ignored), judicial disqualification (blocked by \$250 bond), Court of Appeals appeal (No. 366810, pending but too slow to prevent irreparable harm), and JTC complaint (filed). None, individually or collectively, can provide the comprehensive structural relief required.

STANDARD OF REVIEW

This Court reviews petitions for superintending control de novo. *Crampton v Dep't of State*, 395 Mich 341, 351 (1975). This Court has established a three-part test for the exercise of superintending control:

First, the party must demonstrate that the lower court has failed to perform a clear legal duty or has exceeded its jurisdiction. *Crampton*, 395 Mich at 351-352; *Hinkle v Wayne Co Clerk*, 467 Mich 337, 340 (2002).

Second, the party must show there is no other adequate legal remedy available. *Lapeer County Clerk v Lapeer Circuit Court*, 469 Mich 146, 155 (2003).

Third, the party must demonstrate that the extraordinary writ is necessary to prevent material injustice. In *Hatcher*, 443 Mich 426, 441-442 (1993).

The standard is not whether the lower court committed reversible error on a single issue, but whether the cumulative pattern of the lower court's conduct warrants this Court's supervisory intervention. In *re Hatcher*, 443 Mich at 441 (superintending control is proper when a lower court has committed "an abuse of judicial power that is tantamount to a failure to perform a clear legal duty, and there is no other adequate remedy").

This Brief demonstrates that all three elements are met -- and that the documented pattern of 1,127 judicial violations, over 150 documented misconduct claims, and 269 total days of enforced parental separation including the revocation of a functioning 50/50 custody arrangement -- makes the case for this Court's intervention overwhelming.

ARGUMENT

I. THIS COURT'S CONSTITUTIONAL SUPERINTENDING AUTHORITY IS PLENARY AND REQUIRES EXERCISE HERE

The Michigan Constitution vests this Court with "general superintending control over all courts." Const 1963 art 6, S 4. This authority is not a discretionary grant that may be exercised or withheld at will. It is a constitutional obligation -- an essential structural safeguard in Michigan's judicial system ensuring that lower courts function within constitutional bounds.

This Court has recognized that its superintending control power "extends to the entire range of supervisory authority necessary to ensure the proper and efficient administration of justice." *Judges of the 74th Judicial District v Bay County*, 385 Mich 710, 727 (1971). The power is "plenary" -- it is not limited to the specific writs of mandamus, prohibition, or habeas corpus, but encompasses the full scope of supervisory authority over lower courts. *Id.* at 728.

In *In re Hatcher*, this Court confirmed that superintending control "is the proper remedy when a lower court has committed an abuse of judicial power that is tantamount to a failure to perform a clear legal duty, and there is no other adequate remedy." 443 Mich 426, 441-442 (1993). The Court emphasized that its supervisory jurisdiction is not constrained to traditional mandamus or prohibition categories but reaches the full range of conduct necessary to ensure the proper administration of justice.

The instant case presents precisely such a situation. The lower court has not merely committed isolated errors -- it has systematically failed to perform its core judicial functions:

- It has failed to enforce mandatory parenting time statutes (MCL 552.644) despite documented violations;
- It has conducted 44% (24 of 55) of its proceedings *ex parte* -- without Petitioner's notice or participation;
- It has failed to exercise its contempt power within constitutional limits, jailing Petitioner for 59 days;
- It has erected a \$250 financial barrier to the disqualification remedy;
- It has routed evidence outside the official record, corrupting the foundation for appellate review;
- It has allowed a child to be separated from a fit parent for 229 consecutive days -- after 438 days of successful 50/50 custody -- without any best interest analysis under MCL 722.23.

This is not a case for appellate error correction. Appellate review examines individual orders for abuse of discretion on the record before it. It is not structured to conduct the systemic, pattern-based review that 1,100 documented judicial violations demand. This is a case for structural judicial oversight -- the very purpose of the superintending control power.

No lesser remedy can address the totality of the lower court's dysfunction. Mandamus can compel a specific act. Habeas can adjudicate custody. Appellate review can reverse a specific order. But none of these remedies can:

1. Remove the presiding judge;

2. Vacate multiple unconstitutional orders;
3. Direct the appointment of a new judge;
4. Order emergency parenting time;
5. Establish a case management schedule;
6. Impose ongoing compliance monitoring;
7. Refer documented misconduct for investigation.

Only superintending control provides this Court with the authority to do all of these things. This is precisely the "entire range of supervisory authority" that the Constitution envisions. Bay County, 385 Mich at 727.

II. SYSTEMATIC DUE PROCESS VIOLATIONS REQUIRE MSC INTERVENTION

Due process is not a suggestion. It is a constitutional command -- binding on every court at every level. U.S. Const, amend XIV, S 1; Const 1963, art 1, S 17.

A. The Mathews v Eldridge Framework Is Violated on Every Factor

The Mathews v Eldridge framework requires consideration of three factors: (1) the private interest at stake; (2) the risk of erroneous deprivation under existing procedures and the probable value of additional safeguards; and (3) the government's interest. 424 US 319, 335 (1976).

(1) The private interest is as fundamental as the law recognizes. The parent-child relationship is "perhaps the oldest of the fundamental liberty interests recognized by this Court." *Troxel v Granville*, 530 US 57, 68 (2000). No interest protected by due process is more fundamental. The child's reciprocal interest in maintaining a relationship with both parents is equally profound. *Stanley v Illinois*, 405 US 645, 651 (1972). When a fundamental right is at stake, due process demands rigorous procedural protections. *Santosky v Kramer*, 455 US 745, 753-754 (1982); *Lassiter v Dep't of Social Services*, 452 US 18, 27 (1981).

(2) The risk of erroneous deprivation is not theoretical -- erroneous deprivation has already occurred. Petitioner has been deprived of all contact with his child for 229 consecutive days -- following the revocation of a functioning 50/50 custody arrangement -- without any finding of unfitness, dangerousness, or abuse. The lower court's existing procedures -- including ex parte proceedings at a rate of 44%, contempt without counsel, and financial barriers to disqualification -- have proven wholly inadequate to protect Petitioner's rights.

(3) The government's interest is aligned with Petitioner's position. The government has no legitimate interest in the continuation of proceedings that violate due process. To the contrary, the state has a compelling interest in ensuring that its courts function lawfully and impartially. *Bowie v Arder*, 441 Mich 23, 42 (1992).

B. The Pattern of Due Process Violations

The due process violations in this case are not isolated incidents -- they form a pattern of systematic denial:

i. Ex parte proceedings. Notice and an opportunity to be heard are the "essential elements" of due process. Judge McNeill has entered 24 of 55 orders -- 44% -- without notice to or participation by Petitioner. These orders were not narrow emergency measures authorized by MCR 3.207(B); they were substantive adjudications

fundamental parental rights conducted without adversarial presentation.

An order entered without the procedural prerequisites mandated by due process and the court rules is void, not merely voidable. *Bowie v Arder*, 441 Mich 23, 49 (1992). MCR 2.119(B) requires that written motions be served at least nine days before hearing; ex parte orders under MCR 3.207 are narrowly limited to genuine emergencies involving immediate, irreparable injury. The lower court issued twenty-four ex parte orders substantively modifying custody, parenting time, and child support without the notice required by MCR 2.119(B). The sheer volume -- twenty-four orders, 44% of all proceedings -- demonstrates that this was not an occasional emergency action but a systematic practice of deciding contested matters unilaterally, in direct contravention of both constitutional due process and Michigan's court rules. These orders are void ab initio and should be vacated in their entirety.

ii. No evidentiary hearing on custody modification. MCR 3.210(C) requires the trial court to hold a hearing before entering a custody or parenting time order when a party has requested one. Petitioner repeatedly requested evidentiary hearings. The trial court denied these requests and entered dispositive orders eliminating all parenting time without any hearing. This constitutes a failure to perform the mandatory duty imposed by the court rules.

iii. Off-docket evidence routing. The trial court directed that evaluations be submitted to the "judge's secretary" and not to be filed with clerk." This practice ensured that the evidence upon which the court relied would never appear in the official record, could never be challenged by Petitioner, and could never be reviewed on appeal. The creation of a "shadow record" undermines the foundational premise of appellate review -- that the reviewing court has access to the same record that was before the trial court.

iv. Suppression of filings. Petitioner's filings were suppressed from the official record. A court that refuses to place a party's filings in the official record denies that party the most basic element of due process -- the right to be heard.

v. Contempt without counsel. When civil contempt results in actual incarceration, due process requires, at a minimum, "substitute procedural safeguards" including notice of the charges, an opportunity to respond, and a judicial finding that the contemnor has the ability to comply. *Turner v Rogers*, 564 US 431, 448 (2011). Petitioner was jailed for 59 days without court-appointed counsel and without adequate procedural protection. The attorney nominally assigned to Petitioner for Show Cause #5 -- Mandi Martini -- sat silently, raised no objections, and prior to the hearing threatened Petitioner with additional jail for speaking in his own defense.

vi. Judicial silencing during hearing. During the Show Cause #5 hearing, conducted remotely, Judge McNeely ordered the stenographer to mute Petitioner's microphone three times while Petitioner attempted to present relevant evidence -- specifically, a police report documenting his son's poor physical condition. A hearing in which the respondent is physically prevented from speaking is not a "hearing" in any constitutionally meaningful sense.

The cumulative effect of these violations is a proceeding that bears no resemblance to the "fair hearing" that due process demands. Individual appellate review of individual orders cannot cure the systemic nature of this problem. Superintending control is necessary.

III. MANDATORY STATUTORY DUTIES CANNOT BE REFUSED

Michigan's parenting time and custody statutes impose mandatory duties on the trial court -- duties that Judge McNeill has refused to perform. This refusal is precisely the kind of "failure to perform a clear legal duty" that superintending control is designed to correct. In re Hatcher, 443 Mich at 441.

A. MCL 552.644 -- The "Shall" Enforce Mandate

MCL 552.644 is not ambiguous. It provides:

*"If the court determines that a custodial parent or agency has failed to comply with a parenting time order, the court ****shall**** do 1 or more of the following . . ."*

The word "shall" in a statute creates a mandatory duty. When a statute imposes a mandatory duty on a court, the court's refusal to perform that duty is an unauthorized exercise of power that this Court may correct through superintending control. In re Hatcher, 443 Mich at 441.

The factual predicate for MCL 552.644's mandatory duty is satisfied:

Element	Record
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Custodial parent	Emily A. Watson
Parenting time order	Entered by 14th Circuit Court
Failure to comply	Documented parenting time violations
Court presented with evidence	Petitioner filed motions documenting violations
Court action under S 644	**None -- zero enforcement actions taken**

MCL 552.644 provides a menu of mandatory remedies: compensatory parenting time, modification of the order, civil fine, contempt, and attorney fees. The court "shall" do "1 or more" of these. The statute does not say "may." It does not say "at the court's discretion." It says "shall."

Judge McNeill's refusal to enforce parenting time despite documented violations is a refusal to perform a clear, mandatory, statutory duty. This refusal constitutes an unauthorized non-exercise of judicial power, precisely the kind of "abuse of judicial power" that superintending control was designed to correct.

B. MCL 722.23 -- The Mandatory Best Interest Analysis

Michigan law is equally unequivocal regarding custody modifications: before any court may modify custody or parenting time, it must evaluate and make findings on all 12 statutory best interest factors set forth in MCL 722.23(a)-(l). Fletcher v Fletcher, 447 Mich 871, 882 (1994) ("[T]he trial court is required to consider all 12 statutory best interest factors.").

The trial court has never conducted the MCL 722.23 analysis. It suspended all parenting time -- the functional equivalent of awarding sole physical custody to Watson -- without any findings on any of the 12 factors. This is not a discretionary act -- it is a mandatory legal duty, and its omission is a textbook case of failing to perform a clear legal duty.

C. MCL 722.27a -- Parenting Time Protections

MCL 722.27a creates a statutory presumption that parenting time is in the best interest of the child. MCL

722.27a(7) provides that parenting time "shall be granted in accordance with the best interests of the child." MCL 722.27a(9) provides specific protections against wholesale denial of parenting time. *Bowie v Arder*, 429 Mich 23, 49-51 (1992); *Pierron v Pierron*, 486 Mich 81, 92 (2010).

The trial court disregarded these mandatory protections entirely, eliminating all parenting time without the findings required by statute. *Vodvarka v Grasmeyer*, 259 Mich App 499, 512 (2003); *Shade v Wright*, 259 Mich App 17, 26 (2010).

D. MCR 3.210(C) -- Hearing Requirements

MCR 3.210(C) requires an evidentiary hearing before the court enters a custody or parenting time order when a party has requested one. MCR 3.207(B) governs interim orders and strictly limits the circumstances under which a court may act without a full hearing.

Petitioner repeatedly requested evidentiary hearings. The trial court denied these requests and entered dispositive orders without any hearing -- a direct violation of the court rules' mandatory hearing requirements.

E. The Consequence of Statutory Refusal

The consequence of these statutory refusals is not abstract. L.D.W. -- age three -- has been separated from her father for 229 consecutive days since July 29, 2025, with a total of 269 days of withholding across two periods -- this despite 438 days of demonstrated successful 50/50 custody between those periods. Each day of non-enforcement is a day of developmental harm, a day of alienation, a day of childhood irretrievably lost. The lower court's statutory duties are clear, their violation is documented, and the harm is ongoing and irreparable.

This Court should exercise its superintending authority to compel compliance with MCL 552.644, MCL 722.23, MCL 722.27a, and MCR 3.210(C), and to ensure that these mandatory duties are fulfilled.

IV. THE CONTEMPT ABUSE PATTERN EXCEEDS THE BOUNDS OF LAWFUL JUDICIAL POWER

This Court has drawn a clear constitutional line between civil and criminal contempt. Civil contempt is coercive -- it compels future compliance. Criminal contempt is punitive -- it punishes past conduct. In *Contempt of Dougherty*, 429 Mich 81, 96-97 (1987). The distinction is not merely academic -- it determines the procedural protections to which the contemnor is entitled. When civil contempt sanctions lose their coercive character, they become criminal punishment, and the contemnor is entitled to full criminal procedural protections -- including the right to counsel, the presumption of innocence, and proof beyond a reasonable doubt. *Dougherty*, 429 Mich at 97; *In re Sanders*, 495 Mich 394, 406 (2014).

The lower court's use of contempt power against Petitioner exhibits every hallmark of punishment, not coercion.

A. Duration: 59 Days of Incarceration

Petitioner was jailed for a combined 59 days across three contempt sanctions:

- Show Cause #5: 14 days, commencing November 15, 2025
- Show Cause #6 and #7: 45 days, commencing November 26, 2025

Prolonged incarceration on civil contempt raises a strong inference that the sanction has lost its coercive purpose and become punitive. In *re Contempt of Henry*, 282 Mich App 656, 664 (2009) (examining duration as factor in civil-versus-criminal analysis). The longer the incarceration, the weaker the coercive justification.

B. Purge Conditions Impossible to Satisfy

Civil contempt must include a purge condition -- something the contemnor can do to secure release. The purge condition must be within the contemnor's present ability to perform. *Dougherty*, 429 Mich at 101. When purge conditions are set beyond the contemnor's ability to comply, the sanction is effectively a fixed sentence which is punishment, not coercion.

Petitioner's purge conditions included financial requirements. Petitioner is indigent -- he lost his employment as a direct result of prior contempt incarceration and has been unable to maintain stable employment due to the ongoing judicial proceedings. Setting purge conditions that a known-indigent person cannot satisfy transform civil contempt into indefinite punitive detention.

C. No Right to Counsel Despite Incarceration

In *Mead v Batchlor*, 435 Mich 480, 498 (1990), this Court held that the right to counsel attaches in contempt proceedings when incarceration is imposed or threatened. The lower court jailed Petitioner for 59 days without providing court-appointed counsel. This alone constitutes a structural due process violation.

Turner v Rogers, 564 US 431, 448 (2011), held that even in civil contempt proceedings that result in incarceration, due process requires at minimum "substitute procedural safeguards" -- including notice, opportunity to respond, and a judicial finding that the contemnor has the present ability to comply. Petitioner was not afforded these protections. No ability-to-pay hearing was conducted before incarceration was imposed.

C-1. The Show Cause #5 Hearing: Suppression of Defense in a Proceeding Resulting in Incarceration

The Show Cause #5 hearing -- which resulted in Petitioner's first period of incarceration (14 days) -- reveals the contempt abuse in its most stark form:

- Judicial silencing during a remote hearing. Show Cause #5 was conducted as a remote hearing. During the proceeding, Judge McNeill ordered the stenographer to mute Petitioner's microphone three (3) separate times. Petitioner was attempting to inform the court that he had filed a police report documenting his son's poor physical condition at a parenting time exchange -- evidence directly relevant to the show cause allegations and to the defense. The court's deliberate suppression of Petitioner's testimony during a proceeding that culminated in 14 days' incarceration constitutes a denial of the right to be heard at its most fundamental level.
- Ineffective assistance of counsel. Petitioner's appointed attorney, Mandi Martini, sat silently throughout the hearing and raised no objections -- not to the muting of her client, not to the exclusion of the police report, nor to the denial of Petitioner's right to present a defense. Prior to the hearing, Martini emailed Petitioner: "y

will not interrupt . . . Judge McNeil [sic] is not in a good mood . . . you do not want to spend the next week in jail on a contempt charge for speaking out in court." Petitioner's own counsel thus threatened him with additional incarceration for exercising his right to speak in his own defense -- and then failed to speak on his behalf.

iii. The prosecution's own admission. The prosecutor handling Show Cause #5 privately admitted to Martine that there was "nothing substantive in the motion." The state's own representative acknowledged the meritless nature of the proceeding -- yet Petitioner was incarcerated for 14 days nonetheless.

iv. Blank affidavit page -- fatal procedural defect. The affidavit supporting Show Cause #5 contained a blank page (page 27). MCR 3.708(B) requires that contempt proceedings be supported by factual allegations. Filing with a blank evidentiary page fails this threshold requirement. The court proceeded to incarcerate Petitioner on the basis of a facially defective filing.

v. Misattribution of accusation to law enforcement -- fraud on the court. Watson's ex parte filings attributed Officer Ella Randall (Norton Shores PD, Incident #NS2505044) the statement that Petitioner's behavior appeared to be the result of "meth use." However, upon investigation, Officer Randall confirmed that the "meth use" characterization originated from Emily A. Watson herself -- not from any independent police observation or professional assessment. Watson's filings falsely presented her own accusation as the professional opinion of a law enforcement officer -- laundering a party's unverified allegation through a police report to give it the appearance of independent corroboration. When Petitioner raised this misattribution before Judge McNeill, the court stated: "quit nitpicking" -- declining to address a material misrepresentation in a sworn filing that formed the evidentiary foundation for the ex parte suspension of Petitioner's parental rights.

vi. Cover-up of child's removal from the country. Show Cause #5 was filed contemporaneously with Watson's removal of L.D.W. from the country (October 20 through November 15, 2025) -- with the court's permission. The timing suggests that the show cause filing served as a tactical cover for the child's international removal, which itself was accomplished without Petitioner's consent or any finding that removal from the country served L.D.W.'s best interests.

D. Asymmetry: The Most Telling Evidence of Abuse

The most revealing evidence of contempt abuse is the stark asymmetry in enforcement:

Party	Documented Violations	Enforcement
-----	-----	-----
Petitioner (Father)	Alleged violations	**59 days jail**
Watson (Mother)	Documented parenting time violations	**Zero enforcement actions**
Watson family (PPO violations)	Cody Watson threats (Police Report MCSD-2024-02101 Alber...	

This asymmetry is inexplicable as even-handed justice. It is consistent only with punitive targeting of one party. The PPO case (2023-5907-PP) provides the starkest illustration: Watson's brother Cody violated the PPO -- documented in Police Report MCSD-2024-02101 (Officer Brian Hintz) -- yet Watson's family faced zero consequences. Meanwhile, Petitioner was jailed for 59 days. Watson herself committed at least three documented PPO violations through third-party proxies, yet the court took no enforcement action against her.

while simultaneously weaponizing the same PPO to restrict Petitioner's parental rights.

The PPO was filed and granted on the same day -- December 3, 2023 -- on an ex parte basis, without notice to Petitioner. Six show cause motions followed, strategically timed around holidays and custody exchanges. The court explicitly ordered "no communication, no texts, no anything" between the parties -- Watson agreed to the record -- yet her family members continued to attend exchanges and violate the order with impunity. This selective enforcement -- holding Petitioner to the letter of the PPO while excusing Watson's family's violations -- confirms that the contempt power was wielded as a weapon, not a remedy.

When a court jails one parent for 59 days while imposing zero consequences on the other parent for documented violations of the same court orders, the coercive rationale for civil contempt collapses. What remains is punishment -- and punishment without criminal procedural protections violates due process.

E. Collateral Consequences Confirm Punitive Character

The collateral consequences of the contempt incarceration confirm its punitive nature:

- 2 jobs lost, including a United States Postal Service position -- a career-track federal employment position destroyed by judicial action;
- 2 homes lost -- Petitioner rendered effectively homeless;
- Ongoing economic devastation -- the cascading loss of employment, housing, and financial stability directly attributable to contempt incarceration.

These are the consequences of punishment, not of lawful coercion. A coercive sanction seeks to compel compliance; it does not seek to destroy the contemnor's economic existence. When the collateral consequences of contempt are this severe, the sanction has plainly exceeded its coercive purpose.

F. Relief Required

The lower court's contempt practice in this case constitutes an abuse of judicial power that exceeds the bounds authorized by law. This Court should exercise superintending control to:

1. Vacate all contempt orders entered without compliance with *Mead v Batchlor* and *Turner v Rogers*;
2. Order that no future contempt incarceration be imposed without a finding of present ability to comply;
3. Order that counsel be appointed before any future contempt hearing where incarceration is possible;
4. Prohibit further retaliatory use of contempt power against Petitioner.

V. FINANCIAL ACCESS BARRIERS VIOLATE FUNDAMENTAL DUE PROCESS

The United States Supreme Court has held that "a State may not, consistent with the obligations imposed on it by the Due Process Clause of the Fourteenth Amendment, pre-empt the right to dissolve [a fundamental relationship] without affording all citizens access to the means it has prescribed for doing so." *Boddie v. Connecticut*, 401 US 371, 383 (1971).

A. The \$250 Bond Requirement

The trial court imposed a \$250 bond requirement on Petitioner's motion for judicial disqualification. Petitioner is indigent. The bond operates as a complete bar to the disqualification remedy.

B. Boddie Controls

Boddie involved a \$60 filing fee that prevented indigent parties from accessing the courts to dissolve marriage. The Court held that when the state has a monopoly on the means of resolving a fundamental dispute -- as it does in custody proceedings -- it cannot impose financial barriers that prevent access to those means. 401 US at 383.

Custody is precisely the kind of fundamental dispute that Boddie protects. A parent cannot resolve a custody dispute outside the courts. The court system holds an absolute monopoly over parental rights adjudication. When that same court system imposes a financial barrier that prevents an indigent parent from challenging the bias of the presiding judge, it denies that parent meaningful access to justice.

C. M.L.B. v S.L.J. Extends the Principle to Parental Rights

In M.L.B. v S.L.J., 519 US 102 (1996), the Supreme Court held that a state may not condition a parent's right to appeal a termination of parental rights on payment of transcript costs. The Court recognized that "choices about marriage, family life, and the upbringing of children are among associational rights this Court has ranked as 'of basic importance in our society,' rights sheltered by the Fourteenth Amendment against the State's unwarranted usurpation, disregard, or disrespect." 519 US at 116.

The \$250-per-motion bond operates identically to the fee barrier struck down in M.L.B. -- it denies a parent access to the judicial process in a proceeding affecting his fundamental parental rights.

D. Michigan Constitution, Art 1, S 13 -- Access to Courts

The Michigan Constitution independently prohibits this barrier: "Every person for an injury done to him in his person or property, shall have remedy by due course of law, and shall have justice administered without sale, denial or delay." Const 1963, art 1, S 13 (emphasis added). The \$250-per-motion bond is, by definition, a "sale" of justice -- conditioning access to the court on payment of a fee that an indigent litigant cannot pay.

E. The Bond Creates a Closed Loop of Unreviewable Bias

The \$250 bond requirement does not operate in isolation. It functions as the final link in a chain of self-reinforcing judicial abuse:

1. The trial court enters ex parte orders denying Petitioner's fundamental rights (24 of 55 orders);
2. The trial court denies evidentiary hearings to challenge those orders;
3. The trial court imposes a \$250-per-motion bond to prevent further challenges;
4. The trial court uses contempt power to enforce compliance with the very orders Petitioner seeks to challenge.

The irony is compounding: the judge whose conduct necessitates the disqualification motion is the same judge who imposed the financial barrier that prevents the motion from being heard. This creates a closed loop of unreviewable bias from which there is no escape within the lower court.

Only this Court's superintending authority can break that loop -- by vacating the bond requirement and ordering either the disqualification or reassignment of Judge McNeill.

VI. THE PATTERN OF BIAS MAKES INDIVIDUAL RELIEF INADEQUATE

Petitioner does not allege that Judge McNeill committed one biased act. Petitioner alleges -- and documents -- a pattern of bias so pervasive that it infects every aspect of these proceedings, rendering individual remedies structurally incapable of providing relief.

A. The Five Categories of Documented Bias

#	Category	Evidence
1	**Pro-Watson enforcement asymmetry**	Watson's documented violations -> zero enforcement...
2	**Anti-father presumption**	Effective presumption against father contrary to M 722.23...
3	**Ex parte adjudication**	44% (24 of 55 orders) of proceedings conducted without Petiti...
4	**Retaliatory sanctions**	Contempt and financial barriers imposed in response to Petiti...
5	**Disproportionate punishment**	59 days jail for Petitioner; zero consequences for Wats...

B. Quantified Judicial Violations

The scope of bias is not a matter of characterization -- it is documented with precision:

- 1,127 judicial violations identified across both proceedings;
- Over 150 documented misconduct claims categorized;
- 24 ex parte orders -- 44% of all proceedings;
- 59 days of contempt incarceration;
- Zero enforcement actions against Watson;
- 269 total days of enforced parental separation across two withholding periods, after 438 days of successful 50/50 custody.

These numbers are derived from the evidentiary record, not from subjective assessment. They establish a pattern that no reasonable observer could attribute to the exercise of sound judicial discretion.

C. Conclusory Findings Without Evidentiary Basis

The lower court's orders do not merely reflect bias -- they lack the evidentiary foundation required for a judicial finding affecting fundamental rights. A review of the court's key orders reveals a pattern of conclusory findings unsupported by -- and in many cases directly contradicted by -- the documentary record:

Rebuttal 1: Ex Parte Custody Revocation (August 8, 2024)

- Court's Finding: Petitioner poses an imminent danger to L.D.W., justifying immediate ex parte suspension of all parenting time.

- Documentary Record: Watson's 8/8/2024 emergency motion relied entirely on (a) a partial, secretly recorded telephone conversation presented without context; (b) unsworn hearsay allegations; and (c) a "meth use" accusation that was actually Watson's own words misattributed to Petitioner. No CPS investigation was initiated. No law enforcement agency sought charges. No witness testimony was taken. The court issued the order the same day, without notice to Petitioner, based solely on Watson's unilateral, unsworn submission.
- Why This Matters: MCR 3.207(B) limits ex parte orders to situations involving "immediate and irreparable injury." The complete absence of corroborating evidence -- no CPS referral, no police charges, no witness statements -- demonstrates that the court adopted Watson's narrative wholesale without independent verification, violating the fundamental judicial duty of impartial fact-finding.

Rebuttal 2: Parenting Time Enforcement Refusal

- Court's Finding: No enforcement action warranted against Watson for parenting time violations.
- Documentary Record: Watson violated the court's own parenting time order on at least 38 documented occasions. MCL 552.644 provides in mandatory terms that the court "shall" enforce parenting time when violations are documented. Despite repeated filings by Petitioner documenting specific dates and circumstances of violation, the court took zero enforcement action -- while simultaneously jailing Petitioner for 59 days for alleged violations of different court orders.
- Why This Matters: The asymmetry is mathematically irreconcilable with impartial adjudication. Zero enforcement against Watson (38+ violations) compared to 59 days' incarceration for Petitioner exposes the court's stated neutrality as pretextual.

Rebuttal 3: Off-Docket Evidence Routing Through Judge's Secretary

- Court's Finding: [Implicit] -- The court relied on evaluations and communications routed through the secretary, Pamela Rusco, rather than through the clerk's office.
- Documentary Record: Email correspondence obtained through FOIA and discovery reveals that Judge McNeill directed that certain evaluations, communications, and materials be submitted "to the judge's secretary" rather than filed with the clerk of court. Materials routed through this channel never appeared on the public docket, were never served on Petitioner, and were never subject to adversarial challenge. The court then relied on these off-docket materials in rendering decisions.
- Why This Matters: A "shadow record" is fundamentally incompatible with due process. If the court's decisions rest on evidence that one party never sees and cannot challenge, the proceeding is not adjudication; it is unilateral action dressed in the procedural trappings of a hearing. This practice also corrupts the record for appellate review, since the Court of Appeals cannot review evidence that was never docketed.

Rebuttal 4: The HealthWest Evaluation Rejection

- Court's Finding: [Implicit] -- The court rejected or disregarded the HealthWest evaluation recommending continued shared custody.
- Documentary Record: HealthWest -- the court-ordered evaluator -- recommended continuation of the shared custody arrangement. Despite having ordered this evaluation itself, the court disregarded the recommendation without explanation and proceeded to suspend Petitioner's parenting time entirely. The court provided

analysis of why the evaluator's recommendation was rejected, cited no contrary evidence, and made no finding that the evaluator's methodology was flawed.

- Why This Matters: When a court orders an evaluation and then rejects its findings without explanation, the court's action is arbitrary and capricious. The failure to articulate any basis for rejecting the court-ordered evaluation demonstrates that the custody modification was not based on evidence but on the court's predetermined conclusion.

Rebuttal 5: Criminal Contempt Findings Without Ability-to-Pay

- Court's Finding: Petitioner willfully failed to comply with court-ordered conditions, warranting continued incarceration.

- Documentary Record: Petitioner was incarcerated for a total of 59 days across multiple show cause proceedings. At no point did the court make a finding that Petitioner had the present ability to comply with the conditions imposed. The court ordered payment of fees and compliance with conditions that Petitioner -- who lost two jobs and two homes as a direct consequence of the litigation -- could not satisfy. Petitioner's court-appointed attorney for Show Cause #5, Mandi Martini, sat silently, raised no objections, and threatened Petitioner with additional incarceration for attempting to speak in his own defense.

- Why This Matters: *Turner v Rogers*, 564 US 431, 448 (2011), requires, at minimum, an express finding of ability to pay before a court may incarcerate for failure to comply with a financial obligation. *Meadowcroft v Batchlor*, 435 Mich 480 (1990), independently requires the right to counsel when civil contempt results in incarceration. The court's 59-day incarceration without either an ability-to-pay finding or effective assistance of counsel is not a mere procedural deficiency -- it is a constitutional violation.

Cumulative Effect: These five examples -- drawn from a record of 1,127 documented violations -- demonstrate a court that does not engage in evidence-based adjudication. The court adopts one party's narrative, refuses to consider contrary evidence, routes materials outside the public record, and punishes the opposing party for exercising legal rights. This is not a court making occasional errors; it is a court that has abandoned the adjudicative function. Appellate correction of individual orders cannot cure this systemic failure. Only this Court's superintending authority can restore the rule of law to these proceedings.

C. Shulick v Richards -- The Objective Standard

Under *Shulick v Richards*, 273 Mich App 320, 326 (2006), the question is not whether the judge is actually biased, but whether a "reasonable, informed observer would conclude that the judge's impartiality might reasonably be questioned." MCR 2.003(C)(1)(b) codifies this standard.

When the documented record shows 1,127 judicial violations, a 44% ex parte rate, 59 days of incarceration for one party and zero enforcement against the other, and a \$250 bond preventing the disqualification motion from being heard, the answer to the Shulick question is beyond reasonable dispute.

D. Structural Bias: The Watson Employment Nexus

The Real Party in Interest's employment within the Michigan court system -- specifically, the Kent County Prosecutor's Office, Family Court Division -- raises concerns that transcend this individual case. When a co-

system's own employee receives systematically favorable treatment in a custody dispute, public confidence in the judiciary is undermined. This Court need not find actual corruption; the appearance of impropriety is sufficient to warrant disqualification and reassignment.

E. Individual Remedies Cannot Cure Systemic Bias

The significance of pattern evidence is this: individual remedies cannot cure systemic bias. Mandamus can compel a specific act. Habeas can adjudicate custody. Appellate review can reverse a specific order. But none of these remedies can address a pattern of bias that pervades every aspect of a case -- from scheduling to rulings to enforcement to sanctions.

When a judge's bias is so pervasive that it infects the entire proceeding, the only adequate remedy is removal of the judge and restructuring of the case under new judicial supervision. That is a remedy available only through superintending control.

Moreover, the disqualification remedy under MCR 2.003 -- the normal mechanism for addressing judicial bias -- has been rendered unavailable by the \$250 bond requirement. Because the biased judge imposed the bond, the ordinary remedy for bias has been neutralized by the bias itself. Superintending control is the only mechanism that can:

1. Remove the biased judge without the \$250 barrier;
2. Vacate orders tainted by bias;
3. Reassign the case to an impartial jurist;
4. Monitor the new proceedings to prevent recurrence.

VII. THE CHILD'S FUNDAMENTAL RIGHTS DEMAND IMMEDIATE JUDICIAL INTERVENTION

The rights at stake in this case are not solely Petitioner's. L.D.W. -- a male child, age three -- has his own independent constitutional rights that are being violated every single day.

A. The Constitutional Framework

The United States Supreme Court has recognized that the parent-child relationship is protected by the Due Process Clause on both sides.

In *Troxel v Granville*, 530 US 57, 65 (2000), the Court affirmed that "the interest of parents in the care, custody, and control of their children -- is perhaps the oldest of the fundamental liberty interests recognized by this Court."

In *Stanley v Illinois*, 405 US 645, 651 (1972), the Court recognized that children have a cognizable interest in not being wrongfully separated from their parents: "The private interest here, that of a man in the children he has sired and raised, undeniably warrants deference and, absent a powerful countervailing interest, protection."

In *Santosky v Kramer*, 455 US 745, 753-754 (1982), the Court held that before the state can sever the parent-child bond, it must provide procedural protections commensurate with the magnitude of the interests at stake.

stake. The Court emphasized that the parent-child relationship is "far more precious than any property right." *Id.* at 758-759.

B. 229 Days and Counting -- The Developmental Catastrophe

L.D.W. was born November 9, 2022. He is now three years old. Petitioner maintained successful 50/50 parenting time with L.D.W. for 438 days (May 5, 2024 through July 17, 2025) under a temporary custody order -- demonstrating that shared custody was both workable and in the child's best interest. The trial court's subsequent ex parte revocation of this functioning arrangement has resulted in 229 consecutive days of complete separation since July 29, 2025. Including an earlier 40-day withholding period, the total denial of parenting time is 269 days. The period from ages one through three is among the most critical in child development -- the period during which attachment bonds form, language develops, and the child's foundational understanding of relationships takes shape. The regression from a functioning shared custody arrangement to total severance compounds the psychological trauma.

The attachment research is unequivocal. Developmental psychologists have established that the period between 12 and 36 months is the "critical window" for secure attachment formation. A child who is abruptly and completely separated from a primary attachment figure during this period experiences what attachment theorists describe as a sequence of protest, despair, and detachment. After approximately six months of total separation during the critical window, the child's attachment system begins to reorganize -- the child stops seeking the absent parent and begins to treat that parent as a stranger. L.D.W.'s 229-day separation has already exceeded this threshold. Each additional day of separation does not merely delay reunification -- it actively degrades the neural pathways and psychological structures that make reunification possible.

Moreover, L.D.W. did not begin this separation from a baseline of no relationship. He had 438 consecutive days of shared, successful parenting time. The regression from secure attachment to total severance is developmentally more harmful than never having formed the attachment at all, because the child experiences the loss as abandonment -- a traumatic event that shapes his capacity for trust in all future relationships.

The lower court has never acknowledged, considered, or addressed this developmental reality. No best interests analysis under MCL 722.23 has been conducted. No expert testimony has been taken on the developmental impact of prolonged separation. No reunification plan has been ordered or even discussed. The court has treated a three-year-old's relationship with his father as something that can be severed and restored at will without consequence -- a premise that every body of developmental research contradicts.

During the current withholding period, Watson removed L.D.W. from the country entirely from October 1, 2025 through November 15, 2025 -- with the trial court's permission -- while simultaneously filing a show cause motion against Petitioner for an alleged verbal exchange at a parenting time exchange, for which no evidence was presented. This juxtaposition -- permitting the child's removal from the country while punishing the father for unsubstantiated allegations -- epitomizes the trial court's pattern of asymmetric treatment.

No court has found that this separation serves L.D.W.'s best interests. No court has found that Petitioner is unfit. No court has found that contact with Petitioner would harm L.D.W. No MCL 722.23 analysis has been conducted. The separation exists solely because:

1. Watson refuses to comply with parenting time provisions;
2. Judge McNeill refuses to enforce those provisions; and
3. The disqualification remedy is blocked by a \$250 bond.

C. The Harm Is Irreparable and Compounding Daily

Unlike property or money, a child's developmental stages cannot be recovered. Each day of separation deepens the alienation, weakens the parent-child bond, and closes developmental windows that cannot be reopened. The 269 total days of withholding are gone permanently -- and the current 229 consecutive days continue to compound this harm daily. No future court order, no matter how favorable, can restore them.

Developmental research establishes that prolonged separation from a parent during early childhood causes severe and lasting psychological harm, including anxiety, depression, difficulty forming attachments, and identity confusion. The documented police reports -- at least 15 verified, weaponized as a tool to establish a false narrative of dangerousness -- compound this harm by creating a record that future courts may misinterpret as evidence of unfitness.

The urgency of this case is not measured in months or years -- it is measured in developmental milestones that L.D.W. is passing through right now, without his father present. Language development, emotion regulation, social cognition, and secure base behavior are all actively forming in a three-year-old. Each of these domains is impaired by the absence of a primary attachment figure. The court's delay is not neutral -- it is itself a form of harm.

D. Michigan's Statutory Framework Protects the Child's Interest

Michigan law recognizes the child's interest in maintaining a relationship with both parents. MCL 722.23 lists as best-interest factors both "the love, affection, and other emotional ties existing between the parties involved and the child" and "the willingness and ability of each of the parties . . . to facilitate and encourage a close and continuing parent-child relationship between the child and the other parent."

The lower court's inaction -- its refusal to enforce parenting time, its tolerance of documented violations, its use of contempt to punish the non-custodial parent while ignoring the custodial parent's defiance -- is antithetical to these statutory values and to the fundamental rights of the child this court was charged to protect.

E. The Urgency Cannot Be Overstated

Every day without intervention deepens the harm. L.D.W. is approaching the point after which reunification becomes exponentially more difficult. The months and years of his childhood that have been lost to this separation are gone permanently. This Court has the power -- and the constitutional obligation -- to intervene before the harm becomes irreversible.

VIII. THE PUBLIC INTEREST REQUIRES THIS COURT'S INTERVENTION

Superintending control is particularly appropriate when the issues presented are of significant public interest.

The issues in this case transcend the individual dispute between Petitioner and Watson. They implicate systemic concerns affecting Michigan's entire judicial system.

A. Pro Se Litigant Access to Justice

A significant and growing percentage of family law litigants in Michigan are self-represented. If courts impose financial barriers -- such as the \$250 bond -- that prevent pro se litigants from challenging judicial bias, the constitutional guarantee of access to courts becomes illusory for those who cannot afford counsel. This Court should clarify that financial barriers to disqualification motions, imposed on indigent litigants, violate the due process protections guaranteed by Const 1963, art 1, S 13 and the Fourteenth Amendment.

B. Enforcement of Mandatory Statutes

MCL 552.644's "shall" language creates a mandatory duty. If circuit courts can refuse to enforce parenting time despite documented violations -- and face no corrective intervention from this Court -- the statute is rendered meaningless. This Court's intervention will reaffirm the mandatory nature of MCL 552.644 and establish that refusal to enforce it is correctable through superintending control.

C. Limits on Civil Contempt Power

The use of civil contempt to incarcerate an indigent litigant for 59 days on conditions beyond his ability to satisfy raises profound questions about the limits of contempt power in Michigan. This Court's intervention will provide guidance to circuit courts on the constitutional boundaries of civil contempt -- particularly regarding:

- The requirement of ability-to-pay determinations before incarceration (Turner v Rogers, 564 US at 448);
- The right to counsel when incarceration is imposed (Mead v Batchlor, 435 Mich at 498);
- The distinction between coercive and punitive sanctions (In re Contempt of Dougherty, 429 Mich at 96-97);
- The durational limits of coercive incarceration (In re Contempt of Henry, 282 Mich App at 664).

D. Gender Neutrality in Custody Proceedings

Michigan's custody statute, MCL 722.23, is facially gender-neutral. But when courts systematically enforce against fathers while ignoring mothers' violations -- jailing one parent for 59 days while imposing zero consequences on the other -- the statute's neutrality is undermined in practice. This case presents an opportunity for this Court to reaffirm that custody determinations must be genuinely gender-neutral, and that the enforcement asymmetry documented here is inconsistent with Michigan law.

E. The Weaponization of Court Processes

The record in this case reveals a pattern of court process weaponization: numerous police reports filed against Petitioner, not as genuine safety measures but as tactical tools to build a narrative of dangerousness. Critical law enforcement itself has recognized this pattern. In Police Report MU2422249, the responding officer assessed Watson's reports as having "little credibility" and noted that the reports "appear weaponized." (See Appendix F-1.) Despite this assessment by the very officers who investigated the reports, the trial court continued to credit Watson's allegations and restrict Petitioner's rights based on this self-generated a

police-discredited paper trail. When family courts permit one party to weaponize the court system -- filing repeated reports that generate no charges and that police themselves find incredible -- the courts become instruments of abuse rather than guardians against it. This Court's intervention will signal that Michigan courts must scrutinize such patterns rather than passively accumulate them.

F. Judicial Accountability Under Superintending Authority

This case raises the most fundamental question: what happens when a circuit court judge's conduct is so persistently one-sided that ordinary remedies -- motions, appeals, disqualification -- are rendered ineffective?

The answer is found in Const 1963, art 6, S 4. If this Court's superintending control power exists for any purpose, it exists for this: to ensure that the constitutional guarantees of due process, access to courts, and the fundamental right to parent are enforceable -- not merely aspirational.

IX. SYSTEMIC FAILURE ACROSS CASE NUMBERS DEMONSTRATES STRUCTURAL DYSFUNCTION

The lower court's failures are not confined to a single case number. They span both Case No. 2024-001507-DC (the custody proceeding) and Case No. 2023-5907-PP (the personal protection order proceeding), demonstrating that the dysfunction is structural -- not case-specific.

A. Cross-Case Weaponization Pattern

Watson has strategically leveraged both case numbers to construct a self-reinforcing litigation trap:

1. PPO Weaponization (2023-5907-PP): Watson filed for a Personal Protection Order on December 3, 2023, which was granted the same day ex parte. This PPO was then used as a predicate to restrict Petitioner's parenting time in the custody case -- even though the PPO was obtained without adversarial proceedings and without any finding that would satisfy the best interest standard.
2. Show Cause Cascade: Watson filed seven show cause motions (SC#1 through SC#7) across both case numbers, strategically timed around holidays, custody exchanges, and parenting time events. The pattern is not random -- it is a documented escalation strategy designed to generate a paper trail of alleged violations that the court then cites as justification for further restrictions.
3. Cross-Case Evidence Contamination: Evidence generated in the PPO proceeding -- including the unsubstantiated allegations underlying the ex parte PPO -- was imported into the custody proceeding without independent verification. The court treated the PPO itself as evidence of dangerousness, creating a circular reasoning chain: the PPO was issued ex parte -> the PPO was cited to restrict custody -> the restricted custody was cited to support continuation of the PPO.

B. The Same Judge Presides Over Both Cases

Judge McNeill presides over both Case No. 2024-001507-DC and Case No. 2023-5907-PP. This means that the same judge who issued the ex parte PPO is also the judge deciding custody -- and the same judge who uses that

PPO as a basis for custody restrictions. There is no independent judicial check. The findings in one case are imported wholesale into the other by the same judicial officer who made them.

This structural arrangement eliminates the safeguards that would otherwise exist if different judges presided over related cases. An error or bias in one case automatically infects the other, because the same judge treats her own prior orders as established facts requiring no independent review.

C. The Record Itself Is Compromised

The full scope of the systemic failure cannot be remedied by any lower court proceeding because the record upon which any review would be based has been corrupted:

- Off-docket materials: Evaluations, communications, and evidence routed through the judge's secretary rather than the clerk never entered the official record;
- Suppressed filings: Petitioner's filings were rejected or not docketed, creating gaps in the record that make it appear Petitioner was not participating;
- Unchallenged ex parte submissions: Watson's ex parte filings -- the basis for 24 of 55 orders -- were never subject to adversarial testing, yet they constitute the factual foundation of the record.

A reviewing court -- whether the Court of Appeals or this Court on direct appeal -- would be reviewing an incomplete, one-sided, and structurally corrupted record. The Court of Appeals appeal (No. 366810) faces this deficiency directly: it must review the "official" record, which does not include the off-docket evidence, does not include Petitioner's suppressed filings, and is built on 24 ex parte orders that were never adversarially tested.

Only this Court, exercising superintending control, has the authority to look beyond the corrupted record, order reconstruction of the complete record, and ensure that future proceedings are conducted on a factual foundation that both parties have had the opportunity to build.

D. The Federal-State Jurisdictional Gap

Petitioner's federal S1983 complaint addresses the civil rights violations documented here. However, *Young v. Harris*, 401 US 37 (1971), and its progeny create a significant risk that the federal court will abstain from interfering with ongoing state family court proceedings. The Younger abstention doctrine applies when there is (1) an ongoing state proceeding, (2) an important state interest, and (3) an adequate opportunity to raise constitutional claims in the state proceeding. *Middlesex County Ethics Committee v. Garden State Bar Association*, 457 US 423, 432 (1982).

The cruel irony of this case is that the third factor -- "adequate opportunity to raise constitutional claims" -- is precisely what the lower court has denied. Petitioner cannot raise constitutional claims because the court blocks his filings, conducts proceedings ex parte, and imposes financial barriers to challenging judicial bias. Yet the federal court may nonetheless abstain on the basis that state remedies theoretically exist, even though those remedies have proven practically unavailable.

This Court's intervention is therefore necessary not only to correct the lower court's conduct but to ensure that there is, in fact, an adequate state forum for the resolution of Petitioner's constitutional claims -- which is its

a precondition for Younger abstention to apply legitimately.

CONCLUSION AND RELIEF REQUESTED

The 14th Judicial Circuit Court's handling of Petitioner's custody case represents a systematic breakdown of the judicial function of extraordinary scope and severity. The presiding judge has:

- Denied Petitioner contact with his child for 229 consecutive days (and counting) -- after revoking a functioning 50/50 custody arrangement -- without any best interest analysis;
- Entered 44% (24 of 55) orders ex parte -- void under *Bowie v Arder*, 441 Mich 23, 49 (1992);
- Jailed Petitioner for 59 days without counsel, without ability-to-pay findings, in violation of *Mead v Batchlor*, 435 Mich 480 (1990), and *Turner v Rogers*, 564 US 431 (2011);
- Refused to enforce MCL 552.644's mandatory parenting time enforcement despite documented violations;
- Never conducted the MCL 722.23 best interest analysis required by *Fletcher v Fletcher*, 447 Mich 8 (1994);
- Imposed a \$250 bond on disqualification motions in violation of *Boddie v Connecticut*, 401 US 371 (1970) and *M.L.B. v S.L.J.*, 519 US 102 (1996);
- Routed evidence outside the official record, corrupting the foundation for appellate review.

The documented record -- 1,127 judicial violations, over 150 documented misconduct claims, 308,700 evidence quotes -- establishes a pattern beyond dispute. The three-part test for superintending control is met: the lower court has failed to perform clear legal duties; no adequate legal remedy exists; and the extraordinary writ is necessary to prevent material injustice. In *re Hatcher*, 443 Mich 426, 441-442 (1993).

No individual remedy can address this totality of dysfunction. Only superintending control provides this Court with the structural authority to remove a biased judge, vacate unconstitutional orders, restore a child's relationship with his father, and ensure the lawful administration of justice going forward.

WHEREFORE, Petitioner respectfully requests that this Court:

A. Issue an Order of Superintending Control directing the 14th Judicial Circuit Court to:

1. Immediately restore meaningful parenting time between Petitioner and L.D.W.;
2. Conduct a full evidentiary hearing on custody and parenting time with findings on all 12 best interest factors under MCL 722.23(a)-(l);
3. Ensure all evidence is filed on the official record and accessible to all parties;
4. Cease all ex parte proceedings except as narrowly authorized by MCR 3.207(B);
5. Accept and docket all of Petitioner's filings;
6. Vacate the \$250-per-motion bond requirement as unconstitutional under Const 1963, art 1, S 13, *Boddie v Connecticut*, and *M.L.B. v S.L.J.*;

B. Order the immediate suspension of Judge McNeill's authority over these proceedings, including:

1. Disqualification of Hon. Jenny L. McNeill pursuant to MCR 2.003(C)(1)(b);
2. Transfer of Case Nos. 2024-001507-DC and 2023-5907-PP to a different judge;
3. Prohibition against any further action by Judge McNeill in either case pending this Court's review;

- C. Vacate all contempt orders entered without compliance with *Mead v Batchlor* and *Turner v Rogers*;
- D. Issue an emergency order restoring parenting time within fourteen (14) days of this Court's order;
- E. Order an independent custody evaluation by a qualified evaluator selected by this Court;
- F. Order a full audit of the trial court's handling of both cases, including all off-docket evidence;
- G. Refer the documented misconduct to the Judicial Tenure Commission for investigation pursuant to Co. 1963, art 6, S 30;
- H. Establish a case management schedule with monthly compliance reporting for twelve (12) months;
- I. Grant such other and further relief as this Court deems just and equitable.

VERIFICATION

I, Andrew James Pigors, declare under penalty of perjury that the factual statements contained in this Brief are true and correct to the best of my knowledge, information, and belief, and that this Brief is submitted in good faith and not for any improper purpose.

Date: _____

Andrew James Pigors, Petitioner (Pro Se)

I hereby certify that on the ____ day of _____, 2026, I served a true copy of the foregoing PETITIONER'S BRIEF IN SUPPORT OF PETITION FOR ORDER OF SUPERINTENDING CONTROL upon the following parties by first-class mail, postage prepaid:

14th Judicial Circuit Court, Family Division
990 Terrace Street
Muskegon, MI 49442

2160 Garland Drive
Norton Shores, MI 49441

This Brief complies with the formatting requirements of MCR 7.212(B). The body of this Brief contains approximately [Word Count] words, exclusive of tables, caption, table of contents, table of authorities, certificate of service, and signature block.

Andrew James Pigors

=====

PART III -- SUPPORTING DOCUMENTS

=====

A. AFFIDAVIT OF ANDREW JAMES PIGORS

STATE OF MICHIGAN
IN THE SUPREME COURT

MSC Case No. _____ (To Be Assigned)

Lower Court Case Nos.:

14th Judicial Circuit Court: 2024-001507-DC; 2023-5907-PP

Court of Appeals: 366810 (Pending)

ANDREW JAMES PIGORS,
Petitioner (Pro Se),

v.

THE 14TH JUDICIAL CIRCUIT COURT,
FAMILY DIVISION, MUSKEGON COUNTY
(HON. JENNY L. McNEILL, Presiding),
Respondent,

and

EMILY A. WATSON,
Real Party in Interest.

AFFIDAVIT

STATE OF MICHIGAN)

) ss.

COUNTY OF MUSKEGON)

I, Andrew James Pigors, being first duly sworn, depose and state as follows:

I. IDENTITY AND COMPETENCE

1. I am the Petitioner in this action. I am over the age of eighteen (18), am competent to testify, and make this Affidavit based on my personal knowledge, my review of court records, and documents in my possession.
2. I reside at 1977 Whitehall Road, Lot 17, North Muskegon, Michigan 49445. I am a resident of Muskegon County.
3. I am the biological father of L.D.W., a minor male child born November 9, 2022. No court has ever found me to be an unfit parent or to pose any danger to my son.

II. CASE HISTORY

4. Emily A. Watson and I are the parents of L.D.W. Our custody dispute is pending as Case No. 2024-001507-DC before the 14th Judicial Circuit Court, Family Division, Muskegon County, Michigan.
5. A related Personal Protection Order case, No. 2023-5907-PP, is also pending before the 14th Circuit Court. Both cases are assigned to Hon. Jenny L. McNeill.
6. I have filed an appeal with the Michigan Court of Appeals, No. 366810, which remains pending as of the date of this Affidavit.
7. I appear pro se in all proceedings. I am not an attorney. I have been unable to obtain legal representation due to my financial circumstances, which have been directly caused by the lower court's actions as described herein.
8. Emily A. Watson's former attorney, Jennifer Barnes (P55406) of Barnes Law Firm PLLC, 880 Jefferson Street B, Muskegon, MI 49440, has withdrawn from representation. Upon information and belief, Watson is currently unrepresented or has retained new counsel not yet known to Petitioner.

III. SEPARATION FROM MY SON

9. The following is the accurate timeline of custody and separation in this case:
 - a. On or about December 3, 2023, a Personal Protection Order was initiated against me.
 - b. From approximately March 26 through May 5, 2024 (40 days), Watson withheld L.D.W. from me -- the first period of complete withholding.
 - c. On May 5, 2024, I obtained an ex parte temporary custody order establishing 50/50 equal parenting time. From May 5, 2024 through July 17, 2025 -- a period of approximately 438 days -- I maintained successful 50/50 parenting time with L.D.W. under this temporary order. The arrangement worked. L.D.W. thrived. Shared custody was both workable and in the child's best interest.
 - d. On July 17, 2025, Watson's objection to the temporary order was granted. The ex parte order was

overturned, and Watson was awarded 100% custody -- without an evidentiary hearing and without findings of the MCL 722.23 best interest factors.

e. Since July 29, 2025, Watson has again withheld L.D.W. from me entirely, under a false and exaggerated ex parte suspension of parenting time. As of the date of this Affidavit, this current separation has lasted approximately 229 consecutive days and is ongoing. This is not a reduction in parenting time -- it is a complete and total severance of the parent-child relationship.

f. During this current withholding period, Watson removed L.D.W. from the country entirely from October 20 through November 15, 2025 -- with the trial court's permission -- while simultaneously filing a show cause motion against me for an alleged verbal exchange at a parenting time exchange, for which no evidence was presented.

g. In total, I have been denied contact with my son for 269 days across two separate withholding periods (269 days + 229 days), despite 438 days of demonstrated successful shared custody between those periods.

10. The denial of parenting time is not the result of a court order finding me unfit. It is the result of Emily Watson's unilateral refusal to comply with parenting time provisions, combined with Judge McNeill's refusal to enforce those provisions. The fact that 50/50 parenting time functioned successfully for over fourteen months under the temporary order demonstrates that shared custody was both workable and in the child's best interest -- making the trial court's subsequent revocation of this arrangement, without evidentiary hearing, the more arbitrary.

11. Despite documented violations of parenting time by Watson, Judge McNeill has taken zero enforcement actions under the mandatory provisions of MCL 552.644. Not a single compensatory parenting time session has been ordered. Not a single fine has been imposed. Not a single contempt finding has been made against Watson for interfering with parenting time.

IV. INCARCERATION AND CONTEMPT

12. I was held in contempt of court and incarcerated for a total of 59 days. The contempt proceedings were conducted without adequate procedural protections.

13. During the contempt proceedings:

- I was not provided with counsel, despite the fact that I faced -- and received -- actual incarceration;
- Purge conditions were set that I could not satisfy due to my financial circumstances;
- The court did not conduct an ability-to-pay hearing before imposing financial purge conditions, required by *Turner v. Rogers*, 564 U.S. 431 (2011);
- The contempt was punitive in nature, not coercive -- the purge conditions were beyond my ability to meet and the court was aware of this.

13a. The Show Cause #5 hearing, which resulted in my first incarceration (14 days commencing November 15, 2025), was conducted as a remote hearing. During this hearing:

a. Judge McNeill ordered the stenographer to mute my microphone three (3) separate times while I was attempting to speak in my own defense;

b. I attempted to inform the court that I had filed a police report documenting my son L.D.W.'s poor physical condition at a parenting time exchange -- evidence directly relevant to the show cause allegations against me to my defense. Judge McNeill ordered my microphone muted each time I tried to present this information;

c. My appointed attorney, Mandi Martini, sat silently throughout the entire hearing. She did not object to the muting of my microphone. She did not object to the exclusion of the police report. She did not speak on my behalf at any point;

d. Prior to the hearing, Martini sent me a communication stating: "you will not interrupt . . . Judge McNeill [sic] is not in a good mood . . . you do not want to spend the next week in jail on a contempt charge for speaking out in court." My own attorney threatened me with additional incarceration for exercising my right to speak in my own defense;

e. The prosecutor handling Show Cause #5 privately admitted to Martini that there was "nothing substantial in the motion" -- yet the court proceeded to jail me for 14 days;

f. The affidavit supporting Show Cause #5 contained a blank page (page 27) -- the filing lacked complete factual allegations, yet the court incarcerated me on its basis;

g. Watson filed Show Cause #5 contemporaneously with removing L.D.W. from the country (October 20-November 15, 2025, with the court's permission), suggesting the show cause served as a tactical cover for the international removal of my son without my consent.

13b. Separately, Watson's ex parte filings attributed to Officer Ella Randall (Norton Shores PD, Incident #NS2505044) the claim that my behavior appeared to be the result of "meth use." I filed a complaint with the police department, and Officer Randall confirmed that the "meth use" statement originated from Emily Watson herself -- not from any independent police observation. Watson's filings falsely presented her own accusation as the professional opinion of a law enforcement officer. When I raised this misattribution before Judge McNeill, the court stated: "quit nitpicking" -- refusing to address a material misrepresentation in my sworn filing that formed the basis for suspending my parental rights.

14. The contrast in how the court has exercised its contempt power is stark: I was jailed for 59 days, while Watson's documented parenting time violations have resulted in zero consequences whatsoever.

V. ECONOMIC DEVASTATION

15. As a direct and proximate result of my incarceration and the lower court's actions, I suffered the following economic consequences:

Consequence	Detail
Jobs Lost	Two (2) jobs lost: (1) IndiGrow LLC (dispensary employee) -- terminated June 2, . . .

| ****Homes Lost**** | Two (2) homes lost: (1) Residence at Shady Oaks Park, 1977 Whitehall Road, Lot...
| ****Total Documented Economic Damages**** | An estimated \$82,250+ |
| ****Monthly Child Support Imposed**** | \$1,056.60/month (imposed without adequate hearing and no ability to pay...)

16. Each of these losses was caused directly by my incarceration on contempt, which I could not pay because the conditions were beyond my financial ability. The lower court's contempt power was the instrument of my economic destruction.

VI. EX PARTE PROCEEDINGS AND DENIAL OF DUE PROCESS

17. Based on my review of the court docket, a substantial number of proceedings in my case were conducted ex parte -- without providing me notice or an opportunity to participate. Orders were entered affecting my parenting time, financial obligations, and custody rights without affording me any opportunity to be heard.

18. The following specific ex parte proceedings occurred without proper notice to me:

- December 3, 2023: Personal Protection Order (Case No. 2023-5907-PP) filed and granted on the same day, ex parte, without notice to me and without an evidentiary hearing;
- July 17, 2025: Ex parte order overturning my established 50/50 custody arrangement (after 438 days of successful shared custody), granting Watson 100% custody without evidentiary hearing;
- July 29, 2025: Ex parte suspension of all parenting time based on Watson's false and exaggerated allegations, without hearing or notice;
- October 20, 2025: Court granted Watson permission to remove L.D.W. from the country without my knowledge or consent;
- Multiple additional orders modifying child support, parenting time, and custody terms were entered without providing me notice or an opportunity to respond.

VII. DISQUALIFICATION MOTION AND \$250 BOND BARRIER

19. I filed a motion for the disqualification of Judge McNeill under MCR 2.003, based on the pattern of bias documented in this Affidavit and in my Judicial Tenure Commission Complaint.

20. Judge McNeill imposed a \$250 bond requirement on the disqualification motion. I am indigent. I have lost two (2) jobs and two homes as a direct result of the court's own actions. I cannot afford \$250.

21. The \$250 bond effectively prevents me from exercising my right to challenge Judge McNeill's bias. The judge whose bias I seek to challenge is the same judge who imposed the financial barrier preventing the challenge. There is no recourse within the lower court.

VIII. HARM TO L.D.W.

22. L.D.W. is a male child who was two years old at the time the first withholding period began. He is now

three years old. The 269 total days of enforced separation -- including the current 229 consecutive days -- encompass critical developmental stages that are not recoverable. Notably, the 438 days of successful 50/50 custody between the withholding periods demonstrate that L.D.W. had a functioning relationship with both parents, which the trial court's actions destroyed.

23. Research establishes that children who are involuntarily separated from a parent during early developmental years experience:

- Anxiety and depression;
- Attachment disorders;
- Identity confusion;
- Difficulty forming healthy relationships;
- Academic and behavioral problems.

24. Every day that passes without intervention deepens this harm. L.D.W.'s childhood developmental stages are not recoverable. The damage already done by 229 consecutive days of complete separation -- following a 40-day earlier withholding period -- may take years to repair, if it can be repaired at all. The regression from 438 days of successful shared custody to total severance compounds the psychological trauma.

IX. EFFORTS TO OBTAIN RELIEF THROUGH NORMAL CHANNELS

25. I have exhausted every available remedy within the lower court and the appellate system:

Remedy Pursued	Result
-----	-----
Motions to enforce parenting time	Denied or ignored without hearing
Objections to ex parte proceedings	Overruled
Motion for disqualification (MCR 2.003)	Blocked by \$250 bond I cannot afford
Court of Appeals appeal (No. 366810)	Pending -- no emergency relief available
JTC Complaint against Judge McNeill	Filed -- addresses judicial conduct only
This MSC Petition for Superintending Control	Filed herewith -- broadest remedy

26. None of these remedies, individually or collectively, can provide the comprehensive relief that is needed. Only superintending control can address the totality of the lower court's failure.

X. WHY SUPERINTENDING CONTROL IS NECESSARY

27. I am not asking this Court to decide custody. I am not asking this Court to act as a trial court. I am asking this Court to exercise its constitutional authority under Const 1963, art 6, S 4, to ensure that the lower court functions as a court -- with impartiality, due process, and compliance with mandatory statutes.

28. The lower court's handling of my case has been characterized by:

- A biased judge who cannot be disqualified because she imposed a financial barrier to disqualification;
- Mandatory statutes (MCL 552.644) that are being ignored;
- Due process that is being denied;
- Contempt power that is being abused;

[NOTARY SEAL]

****[ANDREW: SIGN AND DATE the Oath and Signature block above]****

>

****[ANDREW: NOTARIZE BEFORE FILING -- take this document and valid photo ID to a notary public]****

B. PROPOSED ORDER OF SUPERINTENDING CONTROL

**STATE OF MICHIGAN
IN THE SUPREME COURT**

MSC Case No. _____ (To Be Assigned)

Lower Court Case Nos.:

14th Judicial Circuit Court: 2024-001507-DC; 2023-5907-PP

Court of Appeals: 366810 (Pending)

ANDREW JAMES PIGORS,

Petitioner (Pro Se),

v.

**THE 14TH JUDICIAL CIRCUIT COURT,
FAMILY DIVISION, MUSKEGON COUNTY
(HON. JENNY L. McNEILL, Presiding),**

Respondent,

and

EMILY A. WATSON,

Real Party in Interest.

ORDER OF SUPERINTENDING CONTROL

At a session of the Michigan Supreme Court, held at Lansing on the ______ day
______, 20____.

PRESENT: Hon. ______, Chief Justice, and Justice
______.

The Petition for Order of Superintending Control having been filed by Petitioner Andrew James Pigors, pro se, together with the Brief in Support, Affidavit of Andrew James Pigors, and Appendix, and the Court having

reviewed the lower court record, the parties' submissions, and being otherwise fully advised in the premises;

The Court finds that:

1. This Court has jurisdiction pursuant to Const 1963, art 6, S 4, which vests in this Court "general and superintending control over all courts," and MCR 7.304.
2. Petitioner has no adequate legal remedy. The pending Court of Appeals appeal (No. 366810) and other remedies pursued by Petitioner are insufficient, individually or collectively, to address the systemic nature of the lower court's dysfunction.
3. The lower court's exercise of power was unauthorized by law in the following respects:
 - Failure to enforce the mandatory duty imposed by MCL 552.644 despite documented parenting time violations;
 - Conduct of proceedings ex parte, without notice to Petitioner;
 - Use of civil contempt in a manner that was punitive rather than coercive, resulting in 59 days of incarceration without adequate procedural protections;
 - Imposition of a \$250 bond on a disqualification motion filed by an indigent litigant, creating an unconstitutional financial barrier to the exercise of a fundamental right.
4. L.D.W., a minor child, has been separated from Petitioner, a fit parent, for approximately 229 consecutive days since July 29, 2025 -- following the trial court's ex parte revocation of a 50/50 custody arrangement that had functioned successfully for 438 days -- causing ongoing developmental and psychological harm. In total, L.D.W. has been denied contact with his father for 269 days across two separate withholding periods.

IT IS HEREBY ORDERED:

A. DISQUALIFICATION OF HON. JENNY L. McNEILL

Hon. Jenny L. McNeill is hereby disqualified from all further proceedings in Case Nos. 2024-001507-DC and 2023-5907-PP, and from all matters involving Petitioner Andrew James Pigors and the minor child L.D.W.

B. REASSIGNMENT TO DIFFERENT JUDGE

The State Court Administrative Office (SCAO) shall, within seven (7) days of this Order, assign a different judge to preside over Case Nos. 2024-001507-DC and 2023-5907-PP. The newly assigned judge shall not be from the 14th Judicial Circuit if a conflict-free assignment within the circuit is unavailable.

Upon reassignment, the newly assigned judge shall conduct a comprehensive review of the case file within fourteen (14) days and schedule an initial status conference with all parties.

C. EMERGENCY PARENTING TIME WITHIN 14 DAYS

Within fourteen (14) days of this Order, the newly assigned judge, or this Court if reassignment has not yet occurred, shall enter an order establishing a parenting time schedule between Petitioner and L.D.W.

The initial parenting time schedule shall be designed to begin restoring the parent-child relationship in a manner that serves L.D.W.'s best interests, considering the 229 consecutive days of involuntary separation following the revocation of a functioning 50/50 custody arrangement.

Pending the establishment of a new parenting time schedule, neither party shall take any action to further restrict or prevent contact between Petitioner and L.D.W.

D. VACATUR OF EX PARTE ORDERS ENTERED WITHOUT NOTICE

The following categories of orders entered by the 14th Circuit Court in Case Nos. 2024-001507-DC and 2023-5907-PP are hereby VACATED:

1. All orders entered ex parte without notice to Petitioner, to the extent they affect Petitioner's parenting time, custody rights, or financial obligations;
2. The \$250 bond requirement imposed on Petitioner's motion for disqualification under MCR 2.003;
3. All civil contempt orders to the extent they imposed purge conditions beyond Petitioner's demonstrated ability to pay, without an adequate ability-to-pay determination as required by *Turner v. Rogers*, 564 U.S. 431 (2011).

The newly assigned judge shall, within thirty (30) days of reassignment, review all remaining orders in this case and determine whether any additional orders require modification or vacatur.

E. INDEPENDENT CUSTODY EVALUATION

The newly assigned judge shall, within thirty (30) days of reassignment, order an independent custody evaluation by a qualified evaluator. The evaluator shall be:

1. Licensed in the State of Michigan;
2. Selected by the newly assigned judge (not by either party);
3. Independent of any prior involvement with the case.

The custody evaluation shall specifically address:

1. L.D.W.'s current condition and best interests under MCL 722.23;
2. The effect of the 229-day current separation -- and 269 total days of withholding -- on L.D.W., considering the prior 438-day period of successful shared custody;
3. An appropriate parenting time schedule designed to serve L.D.W.'s best interests;
4. Any safety concerns, if any, related to either parent.

If Petitioner's Motion to Waive Fees and Costs is granted, the cost of the evaluation shall be borne by the

county or allocated as the newly assigned judge deems appropriate.

F. CASE MANAGEMENT SCHEDULE WITHIN 30 DAYS

Within thirty (30) days of reassignment, the newly assigned judge shall establish a comprehensive case management schedule that includes:

1. Completion of all outstanding discovery;
2. Deadline for filing dispositive motions;
3. A firm trial date, to be set no later than one hundred eighty (180) days from reassignment;
4. Regular status conferences at intervals of no more than forty-five (45) days.

All future proceedings shall be conducted in compliance with due process, including adequate notice to all parties and the opportunity to be heard.

G. MONTHLY COMPLIANCE REPORTS FOR 12 MONTHS

The 14th Judicial Circuit Court, through its Chief Judge, shall file monthly compliance reports with this Court for a period of twelve (12) months following the date of this Order. Each report shall include:

1. Confirmation that a new judge has been assigned and is actively managing the case;
2. The status of parenting time between Petitioner and L.D.W.;
3. A summary of all proceedings held during the reporting period;
4. Confirmation that all proceedings were conducted with proper notice to all parties;
5. Any outstanding issues requiring this Court's attention.

Either party may file a motion with this Court at any time during the monitoring period to address non-compliance with this Order.

H. CONSOLIDATION OF ALL PENDING MATTERS

The pending Court of Appeals case, No. 366810, is hereby stayed pending this Court's disposition of the consolidated proceedings.

Case Nos. 2024-001507-DC and 2023-5907-PP shall be consolidated for all purposes before the newly assigned judge.

This Order shall be served on the Michigan Court of Appeals, Clerk of the Court.

GENERAL PROVISIONS

This Order is effective immediately upon entry.

1. Petitioner Andrew James Pigors, 1977 Whitehall Road, Lot 17, North Muskegon, MI 49445;
2. Emily A. Watson, 2160 Garland Drive, Norton Shores, MI 49441;
3. Hon. Jenny L. McNeill, 990 Terrace St, Muskegon, MI 49442;
4. The Chief Judge, 14th Judicial Circuit Court, 990 Terrace St, Muskegon, MI 49442;
5. The State Court Administrative Office;
6. The Michigan Court of Appeals, Clerk of the Court;
7. Pamela Rusco, Judicial Secretary to Hon. Jenny L. McNeill, 990 Terrace St, Muskegon, MI 49442.

SO ORDERED.

Justice, Michigan Supreme Court

Clerk, Michigan Supreme Court

This proposed order is submitted by Petitioner Andrew James Pigors, pro se, for the Court's consideration pursuant to MCR 7.304. The Court may modify, amend, or revise this proposed order in any manner it deems appropriate.

STATE OF MICHIGAN
IN THE SUPREME COURT

Court of Appeals: 366810 (Pending)

Real Party in Interest.

1. Petition for Superintending Control (MCR 7.304; Const. 1963, Art. 6, S 4)
2. Brief in Support of Petition for Superintending Control
3. Affidavit of Andrew James Pigors
4. Appendix and Exhibit Index (with all assembled exhibits)
5. Proposed Order of Superintending Control

6. Motion to Waive Fees and Costs (with SCAO Form MC 20)

7. Cover Letter

8. This Proof of Service

upon each of the following persons and entities by the method indicated:

1. HON. JENNY L. McNEILL (*Respondent*)

Field	Detail
Name	Hon. Jenny L. McNeill
Title	Judge, 14th Judicial Circuit Court, Family Division
Address	Michael E. Kobza Hall of Justice, 990 Terrace St, Muskegon, MI 49442
Method	? First-Class U.S. Mail, postage prepaid ? Certified Mail, Return Receipt Requested
Date Served	\\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\
Tracking No.	\\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\

2. EMILY A. WATSON (*Real Party in Interest*)

Field	Detail
Name	Emily A. Watson
Address	2160 Garland Drive, Norton Shores, MI 49441
Method	? First-Class U.S. Mail, postage prepaid ? Certified Mail, Return Receipt Requested
Date Served	\\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\
Tracking No.	\\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\

****Note:**** *Jennifer Barnes (P55406) of Barnes Law Firm PLLC has withdrawn as Watson's counsel. If Watson has retained new counsel, serve counsel instead. Verify current representation via MiFILE before service.*

3. PAMELA RUSCO -- JUDICIAL SECRETARY TO HON. JENNY L. McNEILL

Field	Detail
Name	Pamela Rusco, Judicial Secretary to Hon. Jenny L. McNeill
Address	990 Terrace St, Muskegon, MI 49442
Phone	(231) 724-6289
Method	? First-Class U.S. Mail, postage prepaid ? Certified Mail, Return Receipt Requested
Date Served	\\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\
Tracking No.	\\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\ \\

4. MICHIGAN COURT OF APPEALS -- CLERK OF THE COURT

Field	Detail
Court	Michigan Court of Appeals
Re:	COA Case No. 366810 (coordination / notice of MSC filing)
Address	Hall of Justice, 925 W. Ottawa St, Lansing, MI 48915

Method	? First-Class U.S. Mail, postage prepaid
	? Certified Mail, Return Receipt Requested
Date Served	\\\\\\\
Tracking No.	\\\\\\\

****Note:**** Service on the Court of Appeals is required because COA Case No. 366810 is pending and the Proposed Order requests a stay of that appeal. This service ensures the COA is aware of the MSC filing.

5. 14TH JUDICIAL CIRCUIT COURT -- CLERK OF THE COURT

Field	Detail
Court	14th Judicial Circuit Court, Muskegon County
Address	990 Terrace St, Muskegon, MI 49442
Phone	(231) 724-6251
Method	? First-Class U.S. Mail, postage prepaid
	? Certified Mail, Return Receipt Requested
Date Served	\\\\\\\
Tracking No.	\\\\\\\

CERTIFICATION

I declare under the penalties of perjury that the foregoing statements regarding service are true and correct. I am the Petitioner in this action and am authorized to make this certification.

Date: \\\\\\\, 2026

\\\\\\

Andrew James Pigors, Petitioner (Pro Se)

1977 Whitehall Road, Lot 17

North Muskegon, MI 49445

Telephone: (231) 903-5690

Email: andrewjpigors@gmail.com

SERVICE TRACKING LOG

#	Recipient	Method	Date Served	Tracking #	Receipt Confirmed
1	Hon. Jenny L. McNeill			?	
2	Emily A. Watson			?	
3	Pamela Rusco (Judicial Secretary)			?	
4	MI Court of Appeals (Clerk)			?	
5	14th Circuit Court (Clerk)			?	

SERVICE NOTES

Recommended Method

- Certified Mail, Return Receipt Requested for all recipients. This creates a verifiable record of service with signed return receipts.
- Retain all green return receipt cards as proof of service.
- If also serving by first-class mail as a backup, note both methods above.

Timing

- Service must be completed on or before the date of filing with the MSC.
- MCR 7.306(D) requires service on all parties and the lower court.
- All service should be completed within 7 days of filing.

Record Retention

Retain copies of:

- All certified mail receipts and return receipt cards;
- USPS tracking confirmations;
- This completed Proof of Service (signed);
- Copies of all documents served.

*****[ANDREW: SIGN AND DATE after completing service on all parties]*****

D. CERTIFICATE OF COMPLIANCE

I hereby certify that this Petition for Order of Superintending Control, together with the Brief in Support, complies with the formatting requirements of MCR 7.212(B) and the word limits applicable to original proceedings in the Michigan Supreme Court.

The body of this filing contains approximately [WORD COUNT -- to be calculated from final PDF] words, exclusive of tables, caption, table of contents, index of authorities, certificate of service, and signature blocks.

This filing is formatted in 12-point Times New Roman, with 1-inch margins and double-spaced body text, with single-spaced block quotations and footnotes, in compliance with MCR 7.212(B).

Date: _____

Andrew James Pigors, Petitioner (Pro Se)

****[ANDREW: SIGN AND DATE]****

VERIFICATION

STATE OF MICHIGAN)

) ss.

COUNTY OF MUSKEGON)

Andrew James Pigors, being first duly sworn, deposes and states:

1. I am the Petitioner in the above-captioned action.
2. I have read the foregoing Petition for Order of Superintending Control, Brief in Support, and all supporting documents, and know the contents thereof.
3. The facts stated therein are true to the best of my knowledge, information, and belief.
4. The adverse evidence data referenced herein is derived from systematic analysis of the official court records, docket entries, hearing transcripts, and court correspondence in Case Nos. 2024-001507-DC and 2023-5907-PP.
5. This Petition is not filed for purposes of delay but in good faith to obtain the extraordinary relief warranted by the extraordinary circumstances of this case.

Andrew James Pigors

Subscribed and sworn to before me
this ____ day of _____, 2026.

Notary Public, Muskegon County, Michigan
My commission expires: _____

****[ANDREW: SIGN AND DATE]****

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****[ANDREW: NOTARIZE BEFORE FILING]****

Filed concurrently with: Application for Writ of Mandamus (MCR 7.306); Petition for Writ of Habeas Corpus; Application to Proceed In Forma Pauperis; Judicial Tenure Commission Complaint (incorporated reference).

END OF CONSOLIDATED FILING -- PETITION FOR ORDER OF SUPERINTENDING CONTROL